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Discrimination, Private Liberty, and Public Accommodations Law

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DISCRIMINATION, PRIVATE LIBERTY, AND PUBLIC ACCOMMODATIONS LAW

*by: Jacob Eisler**

ABSTRACT

In 303 Creative LLC v. Elenis*, a fiercely divided Supreme Court opined that commercial vendors enjoy First Amendment protections to decline to serve customers, even where such a choice is prohibited by state public accommodations regimes. In identifying a clash between personal liberty and state instruction, the decision could radically reshape the public accommodations statutory regime, which prevents discrimination against customers from minority and vulnerable groups. Standard constitutional interpretation cannot explain* 303 Creative*, and existing doctrinal and scholarly frameworks will struggle to integrate the decision into the already convoluted narrative of public accommodation law.*

This Article is the first to identify the unifying theme of public accommodation law from the post-Reconstruction era to 303 Creative*: whether commercial activity is a domain of private liberty that protects against state intrusion or, conversely, a shared social practice that is legitimately shaped by collective political decisions. When the Supreme Court characterizes commercial activity as a domain of private liberty, as it did in* 303 Creative*, the Court's enforcement of personal rights curtails the scope and effect of public accommodations legislation. When the Court characterizes such activity as a shared public project, as it did during the Civil Rights era, the Court authorizes the legislature to robustly enforce the public accommodations regime and advance anti-discrimination.*

The judicial classification of commercial society has wider-reaching consequences for constitutional interpretation. The most controversial decisions of the Roberts Court—such as the deregulation of campaign finance and the limitation of governmental regulatory authority over employers—are grounded in the theory that commercial activity is a domain of private liberty that deserves rights-based protections. This conclusion and the competing view that the government has broad authority to curate commercial and economic affairs both seek moral legitimation from the principle of political autonomy. To effectively advance this principle of autonomy, the Supreme Court should classify commercial activity based on actors' contextual social power.

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I. Introduction

Public accommodation legislation prohibits commercial vendors from denying vulnerable persons and groups service based on protected characteristics, such as race.[1] Since the Civil Rights Era, such statutes have been a central mechanism for protecting minorities and other vulnerable groups. Yet such laws faced a profound dilemma in this past term's *303 Creative LLC v. Elenis*.[2] The plaintiff, a designer of wedding websites, argued that Colorado's public accommodation statute could require her to design a website celebrating same-sex marriage because the statute prohibits discrimination on the grounds of sexual orientation.[3] She argued this would coerce her into performing state-mandated speech, thereby violating her expressive liberty. Siding with the plaintiff, the Supreme Court concluded that discrimination by vendors can be constitutionally protected expression, and thus that public accommodations legislation can violate their First Amendment rights.[4] Such a holding could radically transform the public accommodation regime.

Scholars have deemed it a new form of Lochnerism:[5] identification of economic rights that could prevent governmental pursuit of socially important goals. These neo-Lochnerist critiques identify the consequences of protecting discrimination as expressive, but they do not explain the logic of the decision. Indeed, *303 Creative* itself is confusingly reasoned. The doctrinal differences between the conservative majority and progressive dissenting opinions are obscure (other than differing weighting of the values of private expression and of social equality).[6]

1. The central federal public accommodation statute is Title II of the Civil Rights Act of 1964. 42 U.S.C. § 2000a. Most states have passed their own such laws, often with a broader sweep. *State Public Accommodation Laws*, Nat'l Conf. State Legislatures (June 25, 2021), https://www.ncsl.org/civil-and-criminal-justice/state-public-accommodation-laws [https://perma.cc/P86A-LK75].

2. 303 Creative, LLC v. Elenis, 600 U.S. 570 (2023).

3. *Id.* at 580.

4. *Id.* at 603.

5. *See, e.g.*, Elizabeth Sepper, *Free Exercise Lochnerism*, 115 Colum. L. Rev. 1453, 1466–67 (2015); Amanda Shanor, *The New* Lochner, 2016 Wis. L. Rev. 133, 183 (2016); Kenji Yoshino, *Rights of First Refusal*, 137 Harv. L. Rev. 244, 273 (2023) (summarizing scholarship). The Lochnerist frame helpfully identifies the effect of such application of rights; this public-private debate answers the question of what is substantively driving such Lochnerism.

6. The *303 Creative* majority opinion comes close to conceding this when it observes its "principles . . . align . . . with much of the Tenth Circuit's analysis" before proceeding to apply these principles to reach the opposite conclusion. *303 Creative*,

Despite their contrasting tones and outcomes, Justice Gorsuch's majority opinion and Justice Sotomayor's dissenting opinion commit to the same ideals: free speech is a vital personal liberty;[7] discrimination is an evil that must be stopped;[8] and public accommodation laws have been a critical pillar since the 1960s in advancing social equality.[9] So what is the basis of the fierce disagreement?

Making sense of *303 Creative* requires a unified theory of public accommodation law. This Article observes that the decisive question when the Supreme Court assesses public accommodation statutes is *the fundamental character of commercial activity*—the arena regulated by public accommodations legislation. Is such commercial activity public in nature or private in nature? If commercial activity has a public character, it should be subject to collective preferences implemented by popularly authorized governmental regulation. If, however, commercial activity is essentially private, it is a domain of individual liberty and deserves protection as a bearer of constitutionally significant rights. *303 Creative* is a tectonic change because it concludes that the public vending of goods and services ought to be characterized as a private activity. *303 Creative*'s assertion that discriminatory conduct is expressive and the subsequent prospective dismantling of the public accommodation regime hinge upon this underlying conclusion that commercial activity is a private endeavor and a source of personal right.

This question does not just undergird *303 Creativ*e. Classifying commercial activity as public or private provides a comprehensive longitudinal account of the Supreme Court's public accommodations jurisprudence—a body of law that, absent this novel framework, has been marked by radical swings and disjunctions in its 150-year history. At the end of Reconstruction, the Supreme Court read the scope of the Thirteenth and Fourteenth Amendments narrowly to exclude state power to protect social rights,[10] and thus held that the Reconstruction Amendments do not authorize federal public accommodations

600 U.S. at 587. Likewise, Gorsuch's observation that the only explanation for the deviation between majority and dissenting opinions is that they do not seem to be "looking at the same case." *Id*. at 597.

7. *Id*. at 583–85 (lionizing expressive freedom); *id*. at 635–36 (Sotomayor, J., dissenting) (observing the importance of freedom of speech but contrasting it with the non-expressive quality of commercial discrimination).

8. *Id*. at 590 (majority opinion) (observing the compelling governmental interest in eliminating discrimination); *id.* at 636–38 (Sotomayor, J., dissenting) (observing the deep harms of discrimination).

9. *Id.* at 590 (majority opinion) (observing the value of public accommodation laws in preventing discrimination); *id.* at 605–07 (Sotomayor, J., dissenting) (reviewing the law and normative justifications for preventing discrimination through the public accommodations regime).

10. *See* discussion *infra* Section II.A; Samuel R. Bagenstos, *The Unrelenting Libertarian Challenge to Public Accommodations Law*, 66 STAN. L. REV. 1205, 1211 (2014); RICHARD A. PRIMUS, THE AMERICAN LANGUAGE OF RIGHTS 148–49 (Quentin Skinner et al. eds., 1999); JACK M. BALKIN, LIVING ORIGINALISM 225 (2011).

legislation.[11] The Court's conclusion that discrimination by commercial vendors was not regulable by Congress hung upon the premise that commercial activity, and the entire sphere of economic organization, is a private domain insulated from federal intervention. Eighty years later, the federal government, rather than directly challenge this holding, argued that Title II of the 1964 Civil Rights Act ("1964 CRA")[12] should survive because commercial discrimination burdens interstate commerce, and this burden gives the federal government regulatory authority under the Commerce Clause.[13] A unanimous Court readily accepted this argument and permitted a wide sweep in prohibition of discrimination under public accommodation statutes in the decades that followed.[14] The authorization of Congress under the Commerce Clause to address the widespread, deeply rooted "moral wrong[]"[15] of racial discrimination demonstrates the Court's revised view that economic activity is a shared public project rather than a private endeavor, and thus legitimately subject to political oversight. *303 Creative* swings back to a private conceptualization of commerce, as it is the first case to hold that commercial activity[16] may bear First Amendment rights that render public accommodation law unconstitutional (an argument the Court had previously rejected).[17] While each pivotal moment in the history of public accommodation law involves a different doctrinal query, the unifying thread is the nature of commerce as a social practice.

At root, this debate undertakes the philosophical query of if commercial society is a matter of private liberty that insulates individuals from state overreach or if it is a matter of collective, and thus political, self-determination. This debate on the bench parallels a centuries-long philosophical struggle over the nature of commercial society, running from John Locke's theory of property as private mixing of labor to the Marxist theory of social overdetermination of economic affairs to the libertarian 20th-century defenses of private economic autonomy.[18] In the legal academy, it has taken the form of a battle between progressive thinkers who wish to define and exert greater political control over economic matters and libertarians who assert that commerce, property, and economic organization comprise a domain of personal right and spontaneous decentralized order. This account reveals the moral core of the judicial struggle over commercial activity and public accommodations.

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11. Civil Rights Cases, 109 U.S. 3, 25 (1883).
12. 42 U.S.C. § 2000a.
13. Heart of Atlanta Motel, Inc. v. United States, 379 U.S. 241, 258 (1964).
14. *Id.* at 242, 257.
15. *Id.* at 257.
16. Other cases had established that rights may limit the scope of public accommodation law for expression by non-profit actors. *303 Creative* is the first to apply this proposition to for-profit entities—the core target of public accommodation laws. *See* discussion *infra* Section II.C.1.
17. *See Heart of Atlanta Motel, Inc.*, 379 U.S. at 260; *see also* 303 Creative LLC v. Elenis, 600 U.S. 570, 619 (2023).
18. *See infra* Section III.B.2.

Future analysis of public accommodations must address the social ontology of commercial society, rather than treat each specific doctrinal question in isolation. Furthermore, this classificatory divide is of rising importance *across* areas of law. The Court's momentous decisions regarding campaign finance (*Citizens United*)[19] and regulation of employment (*Hobby Lobby v. Burwell*),[20] for example, depend upon classifying commercial action as privately rights-bearing. Scholars have characterized these decisions as Lochnerist attempts to deploy rights to obstruct democratically authorized governance.[21] These opposed perspectives serve the same ultimate norm: political autonomy, whether defined by personal rights or by the collective power of a self-governing electorate to act. This shared, albeit previously obscured, normative commitment provides a way forward when courts must classify commercial society: when a commercial actor has less social and economic power, and thus is more vulnerable to governmental domination and less capable of dominating others, courts should be more inclined to classify their commercial activity as private and deserving of rights protection.[22] Conversely, dominant or powerful commercial entities (such as, for example, actors with monopoly power) deserve to be treated as public in nature, and courts should be less inclined to afford them protection from state and regulatory authority. This principle is broadly compatible with the judicial remit as a champion of rights as well as the wider interest of public accommodation law in protecting the vulnerable.

This Article proceeds as follows. Part II offers a history of public accommodation before the Supreme Court. It first reviews the Court's controversial post-Reconstruction disapprobation of national public accommodation laws in the *Civil Rights Cases*. It then describes the Court's circumvention of this precedent to legitimize Title II of the 1964 Civil Rights Act and thus allow nationwide enforcement of commercial non-discrimination. Part II ends with an assessment of *303 Creative*, showing how it cannot be understood through standard constitutional reasoning. This history shows that existing doctrinal accounts do not adequately explain public accommodation law and demonstrates the need for a novel framework. Part III provides the intellectual substance that can support such a framework: the question of whether commercial activity, the subject regulated by public accommodation, is fundamentally public or private as a matter of social ontology. It informs this contrast by first looking to the intellectual history

19. Citizens United v. FEC, 558 U.S. 310, 339 (2010).
20. *See* Burwell v. Hobby Lobby Stores, Inc., 573 U.S. 682, 691 (2014).
21. *See* sources cited *supra* note 5.
22. This principle is essentially Elysian and authoritatively recounted in JOHN HART ELY, DEMOCRACY AND DISTRUST: A THEORY OF JUDICIAL REVIEW 83, 91–92 (1980). Thank you to Wayne Logan for this observation.

of commercial society, from John Locke to John Rawls. It then turns to the contemporary scholarly disputes that manifest this debate in the legal academy. While progressive legal theorists legitimize robust regulation on the grounds that commercial society is created by and subject to collective political will, they are challenged by libertarian thinkers who identify commercial society as generated from private interactions and as a precious bulwark of liberty against state intrusion. Part IV maps the public/private divide over commercial society onto public accommodations law. It first shows how the reasoning of the majority and dissent of *303 Creative* are each driven by classification and normative implications of treating commercial society as public or private. It then shows how the longer-run history of public accommodation law can be so informed by shifts in its classification. Part V demonstrates the wider significance of the judicial classification of the public/private divide across areas such as campaign finance and employment regulation. It then observes the shared value of autonomy that underlies both conceptualizations and offers an approach based on social power and vulnerability to guide legal classification of commercial activity. This approach should guide the Supreme Court when it must characterize commercial society to resolve cases in the public accommodations context and beyond.

II. Public Accommodation Before the Supreme Court

The Supreme Court's law of public accommodations has experienced three transformational moments. In the widely lambasted *Civil Rights Cases*, the post-Reconstruction Court refused to allow a federal public accommodation law to prohibit discrimination against racial minorities by commercial actors. This hamstrung federal efforts to ensure that, following the Civil War, racial minorities would have meaningful, as opposed to merely formal, equality following emancipation. A second federal attempt to prohibit such discrimination during the 1960s Civil Rights era yielded a different judicial response, as the Court identified authorization for federal public accommodation law under the Commerce Clause. In the nascent third era, the Court has begun to erode the scope of public accommodation law on the grounds that such laws infringe the expressive rights of those engaging in discrimination.

As a matter of law, these eras of public accommodation law have little in common. The first reflected a crabbed, conservative, and now practically circumvented understanding of equal protection. The second expanded a distinct basis of federal constitutional authority to allow public accommodation law to survive without contradicting prior precedent. The final, current era identifies First Amendment rights as potentially infringed by public accommodation law; it thereby limits their scope.

A. *The* Civil Rights Cases *and the State Action Doctrine*

The first tectonic judicial intervention in public accommodation laws occurred in 1883 with the *Civil Rights Cases*, which ruled the federal Civil Rights Act of 1875[23] ("1875 CRA") unconstitutional.[24] The 1875 CRA was meant to ensure that the oppressive legacy of slavery was not only eliminated with regard to formal legal standing, but also to prevent segregation and exclusion based on race in the commercial sphere.[25] It mandated:

> That all persons within the jurisdiction of the United States shall be entitled to the full and equal enjoyment of the accommodations, advantages, facilities, and privileges of inns, public conveyances on land or water, theaters, and other places of public amusement; subject only to the conditions and limitations established by law, and applicable alike to citizens of every race and color, regardless of any previous condition of servitude.[26]

As such, the 1875 CRA was the first federal statute to afford public accommodations rights to a vulnerable minority.[27]

In the *Civil Rights Cases*, however, the Supreme Court notoriously found the 1875 CRA to lack constitutional authorization under the Thirteenth or Fourteenth Amendments. The Court found the Thirteenth Amendment "only to declare and vindicate those fundamental rights which appertain to the essence of citizenship, and the enjoyment or deprivation of which constitutes the essential distinction between freedom and slavery."[28] It thus did not provide a basis for federal authority under Section 5 of the Fourteenth Amendment to protect "social rights"—such as equal access to privately owned public accommodations—that ensure broader equality of constituents within a community, beyond equal legal status before the state.[29] The Court found that Section 5 only offered congressional power to "counteract[] the effect of State laws, or State action," but did not offer a basis for a federal prohibition

23. Civil Rights Act of 1875, 18 Rev. Stat. ch. 114, *invalidated by* The Civil Rights Cases, 109 U.S. 3 (1883).

24. The Civil Rights Cases, 109 U.S. 3, 26 (1883).

25. For a careful analysis of the status of the law from the end of the Civil War into the late 19th century, including conflicting historical accounts of segregation and exclusion, see Joseph William Singer, *No Right to Exclude: Public Accommodations and Private Property*, 90 Nw. U. L. Rev. 1283, 1374–82 (1996).

26. Civil Rights Act 1875 § 1.

27. *See* Singer, *supra* note 25, at 1379. Singer observes some state cases interpreted a public accommodation right entailed in the Civil Rights Act of 1866 ("1866 CRA"). *Id.* However, the prevalent view at the time appeared to distinguish the "social" rights such as public accommodation from the "civil" rights to basic legal standing (such as the right to contract and sue) that were widely recognized as protected by the 1866 CRA. *See* Bagenstos, *supra* note 10, at 1210–11.

28. The Civil Rights Cases, 109 U.S. 3, 22 (1883).

29. This distinction between civil rights and social rights was widely recognized at the time of Reconstruction. *See* Bagenstos, *supra* note 10, at 1210–11; Balkin, *supra* note 10, at 220, 223; Primus, *supra* note 10, at 154.

of "every act of discrimination which a person may see fit to make as to the guests he will entertain, or as to the people he will take into his coach or . . . car, or admit to his concert or theatre, or deal with in other matters of intercourse or business."[30] This principle—the first extended account of the state action doctrine,[31] which dictates that Section 5 only gives Congress the authority to prevent discrimination by state actors—meant that the Fourteenth Amendment could not justify congressional regulation of private commercial activity. In sum, "[i]ndividual invasion of individual rights is not the subject-matter of the [Fourteenth] [A]mendment."[32] The use of and access to property, and participation in the commercial sphere, is thus classified as a private matter beyond the direct reach of federal constitutional authority.

The *Civil Rights Cases* have been thoroughly battered by scholars, who have identified multiple alternate constitutional bases for the 1875 CRA.[33] Despite this, it remains technically good law. Its most enduring legacy has been the controversial state action doctrine. Erwin Chemerinsky has offered a characteristic attack on the liberty-preserving justifications for the state action doctrine, arguing that the public-private distinction is artificial and that the state action doctrine will preserve the right of those with more social power (even if that social power is held through means typically classified as private).[34] Underlying this critique of the state action doctrine is the same normative commitment that supports the public characterization of commercial society:[35] since

30. *The Civil Rights Cases*, 109 U.S. at 24–25.

31. *See* Louis Michael Seidman, *State Action and the Constitution's Middle Band*, 117 MICH. L. REV. 1, 20 (2018).

32. *The Civil Rights Cases*, 109 U.S. at 11; *see also* Richard A. Epstein, *Public Accommodations Under the Civil Rights Act of 1964: Why Freedom of Association Counts as a Human Right*, 66 STAN. L. REV. 1241, 1246 (2014) (quoting *The Civil Rights Cases*, 109 U.S. at 11).

33. For the most enduring attack against the *Civil Rights Cases*, see Charles L. Black Jr., *Foreword: "State Action," Equal Protection, and California's Proposition 14*, 81 HARV. L. REV. 69, 97 (1967). Black condemned the state action doctrine and declared, "The *Civil Rights Cases* are cut off the same bolt of historical cloth as *Plessy v. Ferguson*." *Id.* Other scholars have taken up Black's expansive reading of the Reconstruction powers. *See, e.g.*, Jack M. Balkin, *The Reconstruction Power*, 85 N.Y.U. L. REV. 1801, 1806, 1818–19 (2010) (arguing the Reconstruction Amendments gave Congress a much broader scope of authority than the *Civil Rights Cases* recognized, particularly in the Citizenship Clause of the Fourteenth Amendment); George Rutherglen, *The Thirteenth Amendment, the Power of Congress, and the Shifting Sources of Civil Rights Law*, 112 COLUM. L. REV. 1551, 1554, 1561–63, 1566 (2012) (arguing the scope of the Thirteenth Amendment authorizes Congress to enforce equality in public accommodations).

34. *See* Erwin Chemerinsky, *Rethinking State Action*, 80 NW. U. L. REV. 503, 536–37 (1985); *see also* David M. Howard, *Rethinking State Inaction: An In-Depth Look at the State Action Doctrine in State and Lower Federal Courts*, 16 CONN. PUB. INT. L.J. 221, 260–61 (2017) (emphasizing Chemerinsky's attacks on the liberty-preserving justifications of the state action doctrine); Robin West, *Response to State Action and a New Birth of Freedom*, 92 GEO L.J. 819, 819, 823–25 (2004) (arguing for a softening of the public-private barrier that mirror's Charles Black Jr.'s argument in *Foreword: "State Action," Equal Protection, and California's Proposition 14*).

35. *See infra* Part III.

all aspects of social organization (economic as well as political) are inescapably collective in nature, it is impossible to justify excluding some aspects from government oversight. Other scholars, however, have been more sympathetic to the logic of the state action doctrine precisely because it can preserve a zone of classical private liberty[36]—the same argument used to justify the classification of commercial activity as private. In this regard, the debate over the state action doctrine parallels the debate over the status of commercial activity that has driven the public accommodation doctrine.

B. *Redemption of the 1964 Civil Rights Act Through the Commerce Clause*

The end of Jim Crow required not only the integration of public-owned institutions, such as schools[37] and voting districts,[38] but also the elimination of discrimination in privately owned services open to the public. Yet the *Civil Rights Cases* and the state action doctrine posed an obstacle: on what constitutional basis could Congress require recalcitrantly racist Southern states to cease such discrimination if the Thirteenth and Fourteenth Amendments offered no such grounds?[39]

With Title II of the Civil Rights Act of 1964 ("Title II"), Congress turned to the Commerce Clause, invoking congressional authority over interstate commerce to prohibit discrimination in public accommodations. Title II declares, "All persons shall be entitled to the full and equal enjoyment of the goods, services, facilities, privileges, advantages, and accommodations of any place of public accommodation . . . without discrimination or segregation on the ground of race, color, religion, or national origin"; defines classes of covered establishments that cannot discriminate; and creates a remedy of civil action.[40] To fall within the scope of the Commerce Clause, Title II limits the definition of such covered establishments to be those that "affect commerce" (or rely

36. *See* Gary Peller & Mark Tushnet, *State Action and a New Birth of Freedom*, 92 Geo. L.J. 779, 817 (2004) ("Without the state action doctrine, the liberal notion of a regime of negative rights against the government makes no sense because . . . the government is analytically everywhere in the social field."); Lillian BeVier & John Harrison, *The State Action Principle and Its Critics*, 96 Va. L. Rev. 1767, 1772–73 (2010) (arguing that the state action doctrine coherently preserves a domain of individual choice).

37. Brown v. Bd. of Educ., 348 U.S. 483, 495 (1954).

38. *See* Gomillion v. Lightfoot, 364 U.S. 339, 347–48 (1960).

39. One position is that the *Civil Rights Cases* should simply have been overturned, much as *Brown* overturned *Plessy v. Ferguson*. *See* James W. Fox Jr., *Intimations of Citizenship: Repressions and Expressions of Equal Citizenship in the Era of Jim Crow*, 50 How. L.J. 113, 113–14 (2006); Balkin, *supra* note 33, at 1820. However, such constitutional about-faces, even if normatively justified, come with strategic risks as well as the at-least-optical challenge of rejecting *stare decisis*. *See id.* at 1804 (discussing massive Southern resistance followed efforts to achieve integration under *Brown*); Norrinda Brown Hayat, *Accommodating Bias in the Sharing Economy*, 83 Brook. L. Rev. 613, 624 (2018) (observing strategic choices of using the Commerce Clause).

40. 42 U.S.C. §§ 2000a(a)–(c), 2000a-3(a).

on state action to undertake discrimination) only if they have a sufficient amount of travel to impact interstate commerce.[41] This reliance on the Commerce Clause has been both praised (as tactically savvy)[42] and softly criticized (as evasive, less expansive in coverage, and less constitutionally forthright)[43] by scholars, but regardless of its ultimate virtuousness, it did provide a mechanism for circumventing the *Civil Rights Cases*. The result was that a wide variety of businesses—though as Joseph Singer is scrupulous to note, not all businesses open to the public—were required to cease discriminating on public accommodation grounds by federal law.[44]

The cautiousness of the drafters of the 1964 CRA was rewarded by the Supreme Court, which upheld the constitutionality of the statute against challenges by Southern businesses in the unanimous decisions *Heart of Atlanta Motel v. United States* and *Katzenbach v. McClung*. Citing *McCulloch v. Maryland*, the Court pointed to its long recognition of the broad Congressional authority over interstate commerce.[45] The Court explicitly recognized that the function of the 1964 CRA was to address the moral wrong of racism and that the reliance on the Commerce Clause was instrumental:

> That Congress was legislating against moral wrongs in many of these areas rendered its enactments no less valid. In framing Title II of this Act Congress was also dealing with what it considered a moral problem. But that fact does not detract from the overwhelming evidence of the disruptive effect that racial discrimination has had on commercial intercourse. It was this burden which empowered Congress to enact appropriate legislation, and, given this basis for the exercise of its power, Congress was not restricted by the fact that the particular obstruction to interstate commerce with which it was dealing was also deemed a moral and social wrong.[46]

The Court further brushes aside any claims that such a public accommodation law "deprive[s regulated parties] of liberty or property under the Fifth Amendment" or suffers "a taking of property without just

41. *See* 42 U.S.C. § 2000a(b).

42. *See* Balkin, *supra* note 33, at 1804–05; Jack M. Balkin, *Commerce*, 109 MICH. L. REV. 1, 38–39 (2010); Rutherglen, *supra* note 33, at 1561.

43. *See* Singer, *supra* note 25, at 1296, 1412–13 (observing the limited range of institutions covered by the 1964 CRA); Balkin, *supra* note 33, at 1835 (observing more direct mechanisms were available to advance antidiscrimination legislation).

44. *See* Lisa G. Lerman & Annette K. Sanderson, Comment, *Discrimination in Access to Public Places: A Survey of State and Federal Public Accommodations Laws*, 7 N.Y.U. REV. L. & SOC. CHANGE 215, 221 (1978). Some states had passed their own public accommodation statutes following the *Civil Rights Cases* but only in the north and west, whereas Southern states tended to permit or even mandate discrimination. *Id.* at 239; *see also* Robert C. Post & Reva B. Siegel, *Equal Protection by Law: Federal Antidiscrimination Legislation After* Morrison *and* Kimel, 110 YALE L.J. 441, 487–502, 492 n.239 (2000) (Douglas, J., concurring in part) (noting states had adopted public accommodation laws prior to the 1964 CRA).

45. Heart of Atlanta Motel, Inc. v. United States, 379 U.S. 241, 258 (1964).

46. *Id.* at 257.

compensation," pointing instead to the broad power of Congress to regulate commerce.[47] As it emphasized in *McClung*, the "power [to regulate Commerce] extends to activities of retail establishments, including restaurants, which directly or indirectly burden or obstruct interstate commerce."[48]

As Samuel Bagenstos observes, these cases have firmly established the general federal power to prohibit discrimination in commercial affairs and overwritten the civil rights/social rights distinction upon which the *Civil Rights Cases* depended[49] (even though the Court was scrupulous in these cases to evade directly challenging the *Civil Rights Cases*).[50] Scholars have varied on the degree to which the Court's approbation of the 1964 CRA on the basis of the Commerce Clause comprises a radical move in favor of social justice. While, contra the *Civil Rights Cases*, the Court reached the "right" outcome from an instrumental perspective,[51] and thus took a durable stance regarding the ability of the federal government to *generally* advance social justice, it did so in a manner that took as expansive a posture as possible. Jack Balkin has characterized the Court as "t[a]k[ing] the easy path that day, with fateful consequences"[52] of declining to expand the power of the Reconstruction Amendments directly; Robert Post and Reva Siegel similarly describe the judicial analysis as "sh[ying] away from a confrontation with its own [Fourteenth Amendment] Section 5 precedents" and identify even more dire downstream consequences for later social rights advancing legislation.[53] Like the 1964 CRA legislation itself, the Court's approbation has simultaneously been approved as the right decision yet less robust than might have been optimal for the cause of justice.

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47. *Id.* at 258–61; *see also* Joseph William Singer, *We Don't Serve Your Kind Here: Public Accommodations and the Mark of Sodom*, 95 B.U. L. Rev. 929, 947 (2015) (discussing the cases cited in *Heart of Atlanta Motel* concerning regulations where an "uncompensated burden . . . was justified by the reasons underlying the public regulation").

48. Katzenbach v. McClung, 379 U.S. 294, 302 (1964).

49. Bagenstos, *supra* note 10, at 1207–08. Post & Siegel describe the *Civil Rights Cases* as "effectively overruled" in terms of limiting Congressional power to prevent discrimination following *Jones v. Alfred H. Mayer Co.*, 392 U.S. 409 (1968), which identified federal power to prevent racial discrimination in land sales under the Thirteenth Amendment. Post & Siegel, *supra* note 44, at 495. *Jones* raises the question of why the Supreme Court's approbation of the 1964 CRA itself did not simply rely on the Fourteenth Amendment. *See Jones*, 392 U.S. at 413; *id.* at 449–50 (Harlan, J., dissenting); Balkin, *supra* note 33, at 1819 (arguing that extending the analysis of *Jones* would yield more extensive breadth than the Court has acknowledged for the Fourteenth Amendment).

50. *See Heart of Atlanta Motel, Inc.*, 379 U.S. at 261 (citing The Civil Rights Cases, 109 U.S. 3 (1883) to show general normative approval of public accommodation laws).

51. *See* Michael Klarman, *An Interpretive History of Modern Equal Protection*, 90 Mich. L. Rev. 213, 277–78 (1991).

52. Balkin, *supra* note 33, at 1805.

53. Post & Siegel, *supra* note 44, at 447–49 (identifying how reliance on the Commerce Clause and its subsequent limitations resulted in the striking down of anti-gun and anti-gender violence legislation).

C. *The Commerce-Defending First Amendment and the New Threat to Public Accommodation*

That the defense of the vulnerable effected by the 1960s Court took the form of reclassifying a private domain as public in nature generated a tension that has finally bubbled to the top of the jurisprudence. In prohibiting discrimination in private interactions and activity, the laws at issue necessarily came at some cost of the breadth of behavior in which individuals could engage. Some of this regulated behavior possesses associational and expressive aspects and thus has constitutional weight under the First Amendment. The question is how the Court would balance these competing interests.[54]

The prevalent scholarly response to the Court's increased willingness to afford First Amendment rights to corporate activity (particularly since *Burwell v. Hobby Lobby*) has been to identify the threatening return of the principle of *Lochner v. New York*:[55] economic rights may be rights-bearing, allow corporations and other economic elites to achieve deregulation through claims of judicially protected rights,[56] and thus further enhance the disproportionate social power held by financially powerful actors. However, the relationship between the application of First Amendment rights to commercial activity is analogical or metaphorical, rather than lineal or precedential.[57] The Supreme Court is not, after all, invoking *Lochner* to justify decisions such as *Hobby Lobby* or *303 Creative*. Rather, these decisions are Lochnerist by invoking individual rights to insulate conduct by corporate actors from legislative choices. The question this Article seeks to answer is *why*, as a matter of internally coherent logic, the Roberts Court is so enforcing

54. The fact that such First Amendment interests are not unlimited is, of course, not a novel proposition. The Court has long allowed regulation of some explicit expression, as in the context of fighting words and obscenity. *See* Chaplinksy v. New Hampshire, 315 U.S. 568, 574 (1942).

55. *See* Lochner v. New York, 198 U.S. 45, 53 (1905). Jamal Greene notes that *Lochner* is a case that is traditionally described as a gross error, expelled from the canon; though unlike cases such as *Dred Scott, Plessy v. Ferguson* and *Korematsu*. *See* Jamal Greene, *The Anticanon*, 125 Harv. L. Rev. 379, 417–18 (2011). The legacy of *Lochner* has its champions, most vociferously David Bernstein. *See, e.g.*, David E. Bernstein, Rehabilitating *Lochner*: Defending Individual Rights Against Progressive Reform 3 (2011); David E. Bernstein, Lochner *Era Revisionism, Revised:* Lochner *and the Origins of Fundamental Rights Constitutionalism*, 92 Geo. L.J. 1, 12–13 (2003); *see also* Randy E. Barnett, *After All These Years,* Lochner *Was Not Crazy—It Was Good*, 16 Geo. J.L. & Pub. Pol'y 437, 437 (2018) ("[Lochner] was a reasonable and good decision"); Richard A. Epstein, The Classical Liberal Constitution 338 (2017) (coyly describing *Lochner* as "(in)famous").

56. *See* Shanor, *supra* note 5, at 135–36; Sepper, *supra* note 5, at 1459, 1508; Thomas B. Colby & Peter J. Smith, *The Return of* Lochner, 100 Cornell L. Rev. 527, 537–38 (2015).

57. *See* Genevive Lakier, *The First Amendment's Real* Lochner *Problem*, 87 U. Chi. L. Rev. 1241, 1243 (2020) (observing *Lochner*'s reasoning and effects can be differentiated from those of the current application of First Amendment rights).

individual rights, rather than what historical case law offers as analogies to this period.

1. *Hurley*, *Dale*, and the Emergence of Countervailing Private Rights

Following judicial approbation of the 1964 CRA, it seems as though the Court would continue to uphold legislative authority to advance equality against claims that discriminatory conduct was constitutionally protected.[58] Furthermore, during this period, the Court indicated that the weight of an asserted private First Amendment interest would be *lesser* if the conduct was purely commercial,[59] and the state interest in promoting equality would be *greater* if it was regulating commercial activity.[60]

When the Court began to recognize that private expressive rights could limit the scope of public accommodation law, it did so outside of the commercial context. *Hurley v. Irish-American Gay, Lesbian and Bisexual Group of Boston* (exclusion of an LGB rights group from Irish St. Patrick's Day parade) and *Boy Scouts of America v. Dale* (exclusion of a gay scoutmaster from Boy Scouts) both found First Amendment interests defeated the countervailing state interests in non-discrimination expressed by public accommodation law.[61] Interestingly, *Hurley* was unanimous, but *Dale* reflected a polarized 5–4 split, with progressives dissenting.[62]

As a matter of legal reasoning, *Hurley* and *Dale* were preconditions for the current erosion of the scope of public accommodations with

58. *See* McCrary v. Runyon, 427 U.S. 160, 179 (1976) (stating that constitutional interests in association, parental rights, and privacy do not provide a constitutional justification for privately run segregated education); Roberts v. U.S. Jaycees, 468 U.S. 609, 621 (1984) (finding neither intimate nor expressive association to justify exclusion of women from a civic club that did not have a particular view on identity); *see also* Douglas O. Linder, *Freedom of Association After* Roberts v. United States Jaycees, 82 MICH. L. REV. 1878, 1880 (1984) (collecting contexts in which the Court rejected association as justifying a right to discriminate).

59. *See McCrary*, 427 U.S. at 188 (stating that a school that "operated strictly on a commercial basis" made it "more public than private," and reduced the weight of the expressive interest); *Roberts*, 468 U.S. at 624 ("[A]ssuring . . . citizens equal access to publicly available goods and services . . . is unrelated to the suppression of expression [and] plainly serves compelling state interests of the highest order.") (citation omitted); Bd. of Dirs. of Rotary Int'l v. Rotary Club of Duarte, 481 U.S. 537, 548 (1987) (identifying no aspect of the mission of the organization that was impaired by allowing women members).

60. *Roberts*, 468 U.S. at 625 (stating that interests in preventing discrimination are "strongly implicated with respect to gender discrimination in the allocation of publicly available goods and services").

61. *See* Hurley v. Irish-Am. Gay, Lesbian, and Bisexual Group of Boston, 515 U.S. 557, 579 (1995); Boy Scouts of Am. v. Dale, 530 U.S. 640, 661 (2000).

62. At root, the progressives would have seen *Jaycees* and *Rotary* as dispositive and prohibiting associational rights from defeating anti-discrimination efforts. *Dale*, 530 U.S. at 685–86 (2000) (Stevens, J., dissenting). However, this lineage of cases shows that *Dale* does not directly prefigure *303 Creative*, as *303 Creative* does not evoke the same question of the expressive significance of association but rather free speech directly.

regard to commercial activity. They demonstrated that expressive and associational interests *could* defeat the state interest in accommodations equality, and they expanded the scope of the range of action that might be seen as having expressive value in such a context.[63] Yet, viewed from the perspective that the purpose of public accommodation law was to ensure equality in access to public vending of goods and services, *Hurley* (in particular) and *Dale* are a less dramatic break with the 1960s cases vindicating public accommodation.[64] Both involved activities with a purpose that was expressive and ideological and thus could plausibly be categorized as having a central First Amendment function. As such, these cases did not conflict with the central innovation of *Heart of Atlanta Motel* and *Jones v. Alfred H. Mayer*—the classification of commercial activity and property ownership as matters of public concern for the purposes of anti-discriminatory legislation.

These cases can be treated as striking an equilibrium: the Court concluded that private activity would receive constitutional protection if its essential purpose was the private expression of ideas rather than commercial benefit. That this principle drives the Court is reinforced by dicta in *Hurley* and *Dale* distinguishing commercial from noncommercial behavior.[65] The Court was willing to permit the state to regulate commercial behavior because such conduct, to achieve its immediate end, is inevitably open and public-facing.[66] Commercial behavior, in short, enjoys nothing but benefits—mutually productive exchange and competition—from being classified as public. The organizational expression in *Hurley* and *Dale*, conversely, plausibly derives some benefit (opportunity for internal ideological coherence) from being classified as private and thus enjoys a constitutional right to exclusion.[67] Such a split also nuances the paradoxical mandate the Court faces in opining

63. Andrew Koppelman, *Signs of the Times*: Dale v. Boy Scouts of America *and the Changing Meaning of Nondiscrimination*, 23 CARDOZO L. REV. 1819, 1821 (2002).

64. The real break was with *Jaycees*; the Court could have readily resolved at least *Dale* by concluding that, as in *Jaycees*, exclusion of a protected group was not the best way of achieving the Boy Scouts' aim. *See id.* at 1824; David McGowan, *Making Sense of* Dale, 18 CONST. COMMENT. 121, 123 (2001) (stating that an application of parallel analysis in *Jaycees* would have led to the First Amendment claim failing).

65. *Dale*, 530 U.S. at 657 (observing the "conflict between state public accommodation laws and the First Amendment rights of organizations has increased" because the scope of the public accommodation statutes has "expanded from clearly commercial entities"); *Hurley*, 515 U.S. at 579 (arguing "that a *noncommercial* speech restriction . . . to produce thoughts and statements acceptable to some groups or, indeed, all people, grates on the First Amendment, for it amounts to nothing less than a proposal to limit speech in the service of orthodox expression") (emphasis added).

66. As *infra* Section III.B.2, describes, this has been for centuries an aspect of thinking of commercial society, beginning with Adam Smith.

67. An analogy can be drawn with the regulation of political parties as mechanisms for private coordination. *See, e.g.*, Cal. Democratic Party v. Jones, 530 U.S. 567, 590 (2000); *see also,* Clingman v. Beaver, 544 U.S. 581, 600 (2005) (O'Connor, J., concurring) ("[C]onstitutional protection of associational rights is especially important in this context because the aggregation of votes is, in some sense, the essence of the electoral process.").

on public accommodation law: it allows public accommodation statutes to achieve their core constitutionally vindicated function of advancing equality in the public context of commerce while protecting rights from government overreach in the context of private organization.

If the Court had not distinguished between private and commercial activity, the capacity of business to invoke expressive rights against public accommodation would have been logically entailed.[68] Yet the first intimations that the Court would grant First Amendment protections to commercial activity were more oblique.[69] In *Masterpiece Cakeshop v. Colorado Civil Rights Commission*—a case widely anticipated as being a judicial referendum on the clash between constitutional rights and public accommodations in the commercial sphere[70]—the Court considered a clash between free exercise of religion by a religious baker who declined to bake a cake for a same-sex marriage in violation of state public accommodation laws protecting LGBTQ persons.[71] Rather than directly address the clash between prospectively expressive commercial activity (the majority described the plaintiff as an "expert baker") and public accommodation, the Court concluded that the relevant Colorado adjudicative agency had failed to consider the plaintiff's claim in a neutral manner.[72] The case was thus resolved as a failure of adjudicative neutrality rather than the core question of if personal rights can trump legislatively mandated equality (though the invocation of procedural neutrality evokes the rule of law quality that must characterize judicial defense of rights).

2. *303 Creative* and Expanding Rights to the Commercial Context

The simmering possibility that commercial activity might enjoy First Amendment protection to engage in discriminatory conduct was finally realized in *303 Creative v. Elenis*. The plaintiff, Lorie Smith, is the sole owner and operator of a company, 303 Creative LLC, that

68. Committed defenders of property as private right disagree with this distinction. *See* Richard A. Epstein, *The Constitutional Perils of Moderation: The Case of the Boy Scouts*, 74 S. CAL. L. REV. 119, 120 (2000) (arguing that only monopoly power justifies anti-discriminatory regulation).

69. *See infra* Section IV.B; similarly, *Citizens United* and *Burwell v. Hobby Lobby* are conceptually parallel in their treatment of commercial activity or ownership as deserving constitutional protections—and preceded *303 Creative v. Elenis*.

70. *See, e.g.*, Bagenstos, *supra* note 10, at 1235 & n.175 (discussing *Masterpiece Cakeshop* when it was before the Colorado Civil Rights Commission); Stephanie H. Barclay & Mark L. Rienzi, *Constitutional Anomalies or As-Applied Challenges? A Defense of Religious Exemptions*, 59 B.C. L. REV. 1595, 1627 (2018). Some were dismayed that the Court instead "turned a matter of constitutional principle into one of adjudicative etiquette." Leslie Kendrick & Micah Schwartzman, *The Etiquette of Animus*, 132 HARV. L. REV. 133, 133 (2018).

71. Masterpiece Cakeshop, Ltd. v. Colo. Civ. Rts. Comm'n, 584 U.S. 617, 621–22 (2018).

72. *Id.* at 625.

designs wedding websites, and is a resident of Colorado.[73] Under the Colorado Anti-Discrimination Act ("CADA"), Colorado's public accommodations statute, public-facing vendors of goods and services may not discriminate on protected grounds, including sexual orientation.[74] Smith, declaring that endorsing same-sex marriage would offend her Christian beliefs, brought a suit seeking injunctive relief against the state of Colorado on the grounds that she might be required to design a website celebrating same-sex marriage under the CADA.[75] Her claim was that being required by government instruction to undertake such a job would entail state-mandated speech to which she objected and thus violated her right to free expression. On its surface, the case presented a conflict between the core values of the judicially protected (if concededly offensive)[76] right to free speech and the (universally recognized as virtuous) state pursuit of equality for vulnerable groups.[77] The struggle in this regard appears first-order normative, a question of what value should resolve the "hard case" (in Dworkinian terms)[78] clash between these values.[79]

At one level, the opinions make clear their differing commitments. Gorsuch's majority opinion declares, "When a state public accommodations law and the Constitution collide, there can be no question which must prevail."[80] Conversely, Sotomayor's dissent counters "invidious discrimination 'has never been accorded affirmative constitutional protections.' In particular, the refusal to deal with or to serve a class of people is not an expressive interest protected by the First Amendment."[81] These differing commitments reflect differing understandings of the facts at hand, yet none of these distinctions can support the ultimate divergence between the two analyses.

a. Is the Activity Expressive?

The point of apparent disagreement between the two opinions that would most categorically (indeed, trivially) resolve this case is if Smith's

73. 303 Creative LLC v. Elenis, 600 U.S. 570, 579 (2023).

74. Colo. Rev. Stat. § 24-34-601(2)(a) (2023).

75. *303 Creative*, 600 U.S. at 580. The facts of the case are similar to those of *Masterpiece Cakeshop*, discussed *passim.*

76. The majority itself observes, "Nor . . . do the First Amendment's protections belong only to speakers whose motives the government finds worthy; its protections belong to all, including to speakers whose motives others may find misinformed or offensive." *Id.* at 595.

77. *Id.* at 589–90.

78. Ronald Dworkin, Law's Empire 255 (1986).

79. *See id.* at 256 (role of Court is resolving hard cases by weaving together precedents into a coherent narrative).

80. *303 Creative*, 600 U.S. at 592.

81. *Id.* at 619 (Sotomayor, J., dissenting) (citation omitted) (quoting Norwood v. Harrison, 413 U.S. 455, 470 (1973)).

action is expressive.[82] If her action is expressive, it should be protected by the First Amendment, and any government regulation of it should be subject to strict scrutiny regardless of how offensive it may be.[83] The majority leans heavily upon the stipulated facts to establish that Smith's action is "pure speech,"[84] and simply assumes the point. The dissent, conversely, identified the public accommodation law at issue as fundamentally not suppressive of expression, but rather a conduct-regulating measure: the "state law . . . simply requires them to serve all members of the public on equal terms. Such a law does not directly regulate petitioners' speech at all, and petitioners may not escape the law by claiming an expressive interest in discrimination."[85] The dissent also appears to advance a moderated version of this claim: even if there is some burdening of speech by public accommodations legislation, such burdening is "incidental" and thus permitted.[86]

If this is truly the issue in dispute, it should be dispositive of the case, *regardless* of the content of the regulation. If Smith's activity is expressive and the statute at issue directly targets that expression (presumably in a viewpoint-discriminatory way by prohibiting homophobic content), the public accommodation must survive strict scrutiny and will likely fail. If her action is not expressive, there is no right activated at all, and the statute survives. If the legislation chills speech, but only incidentally, then the "malleable" standard of intermediate scrutiny should apply.[87]

Such a conduct-versus-speech analysis, however, organizes neither opinion; the majority simply presumes it is expressive, and the dissent's structure conflates its analysis with condemnation of discrimination.[88] Ultimately, however, such a distinction is formalist and subject

82. For an authoritative overview of the tests for expression, see Caroline Mala Corbin, *Speech or Conduct? The Free Speech Claims of Wedding Vendors*, 65 EMORY L.J. 241, 243 (2015). As Corbin notes, the dispositive test for if conduct is expressive is the test articulated in *Spence v. Washington*, 418 U.S. 405 (1974) (per curiam). Corbin, *supra*, at 244. However, as the parties in *303 Creative* had stipulated Smith's conduct was expressive, so this question receives no direct analysis, despite the dissent's circumspect claims discriminatory conduct cannot be expressive.

83. The majority makes effective use of *Snyder v. Phelps*, 562 U.S. 443 (2011) to establish the proposition that offensiveness of speech does not change its status as protected. *See 303 Creative*, 600 U.S. at 586.

84. *See id*. at 587.

85. *Id.* at 625 (Sotomayor, J., dissenting).

86. *Id.* at 635. The claim that "incidental" First Amendment burdens may survive has been recognized elsewhere. *See, e.g.*, Emp. Div., Dep't of Hum. Res. v. Smith, 494 U.S. 872, 878 (1990); Rumsfeld v. F. for Acad. & Institutional Rts., Inc. (*FAIR*), 547 U.S. 47, 67 (2006); *see also* Michael C. Dorf, *Incidental Burdens on Fundamental Rights*, 109 HARV. L. REV. 1175, 1177–78 (1996) (distinguishing between direct and incidental burdens).

87. Corbin, *supra* note 82, at 245 (discussing United States v. O'Brien, 391 U.S. 367 (1968)).

88. The way the dissent develops its reasoning that there has been no abridging of speech has some peculiar implications. While the dissent suggests that vending to the public can be paired with hateful messages, it seems to raise a dilemma: would a business run afoul of public accommodation law if it nominally offered its goods or services to all who ask but paired it with abusive content towards protected groups, or in

to manipulation to fit a desired constitutional outcome. Smith's activity was, in one sense, conduct—it was a commercial decision to sell a product. In another sense, her activity is fundamentally expressive—it communicated content through language. It can thus be placed into either category based on the holistic normative assessment of its social significance.

That the expressivity of the conduct at issue is overdetermined by a normative judgment regarding its value anticipates the main claim of this Article: whether Smith's activity is protected depends on whether commercial activity is seen as having the moral significance typically assigned to speech. As Parts II and III establish, this becomes the question of whether commercial activity is seen as private and rights-bearing or as public and directed towards collective welfare. Once this distinction is identified, the deeper descriptive and normative interests of the two opinions are apparent. For the majority, Smith's commercial activity was eminently private and needed to be protected from government overreach (1) to ensure her own personal liberty and (2) to allow the collective capitalist system to unfold naturally. For the dissent, her commercial activity had to be classified as public to (1) ensure that it was appropriately recognized as part of a collective process vindicated only by its contribution to collective welfare and (2) in line with its collective character, to permit it to be regulated in the name of justice (here, ensuring an inclusive society that advanced protections for the vulnerable).

b. Is the Speech Compelled by the Government?

Similar overdetermined formalism shapes the opinions' differing treatment of an adjacent query that could likewise be dispositive: presuming Smith's activity is speech, does the public accommodations statute compel speech? The essence of Smith's claim is one of being compelled to speak (here, to endorse gay marriage) when she would prefer to stay silent (a well-established constitutional right).[89] Yet if there is no compulsion, her claim has no basis. The dissent declares there is no compulsion: "[A]ny burden on speech is 'plainly incidental' to a content-neutral regulation of conduct."[90] In this view, the government compulsion is that Smith must cease discrimination, not avoid or undertake

its production of goods and services included hateful messages? *303 Creative,* 600 U.S. at 628–29 (Sotomayor, J., dissenting). Would Smith insisting on including homophobic content in any website she made pass public accommodations muster (or might it be, circuitously enough, prohibited only under contract or fit-for-purposes law because a website for a gay couple replete with homophobic content would clearly be contractually unsatisfactory)?

89. *See* W. Va. Bd. of Educ. v. Barnette, 319 U.S. 624, 632–33, 642 (1943) (holding that to compel someone to salute the flag is government overreach).

90. *303 Creative*, 600 U.S. at 631 (Sotomayor, J., dissenting); *see also id.* at 635–36 (describing such a requirement as "textbook viewpoint neutral" regulation rather than an attempt to chill speech) (citation omitted).

speech. For the majority, however, the *effect* of the anti-discriminatory law is a core effect on speech because it will limit what Smith may (or may not) say, demanding that she "utter[s] what is not in [her] mind about a question of political and religious significance."[91]

The ultimate question, therefore, is if the government instruction to avoid discrimination comprises a core burden or only an incidental and *de minimis* effect on expression. As with the question of if the activity is expressive at all, the analysis is formalist. It is indisputable that the purpose of the public accommodation law is not a direct attempt to chill speech; it is an attempt to prevent discriminatory activity. It is likewise indisputable (as even the dissent readily concedes) that Smith's activity, as a generic practice of creating online content, has some expressive capacity.[92] Whether this attempt to prevent activity results in a meaningful burden to speech, or only an "incidental[]" effect, will depend upon the normative status assigned to Smith's activity more generally. If her activity is identified as engaging in the socially valuable contribution to free discourse, the government's intervention will be seen as an invasive overdetermination and thus compelling; if her activity lacks such social value, the governmental effect (while formally the same) can be described as incidental and thus constitutionally sustainable. As with the question of expressivity itself, the question of if the regulation at issue compels speech is only a cypher for an evaluation of the social significance of Smith's conduct itself.

c. The Relevance of a Profit Motive

Yet reexamination of the opinions reveals a less formalist point of contention: what degree of constitutional protection does *commercial* expression deserve? The prevalent point in the majority's opinion is that the commercial nature of the activity does nothing to lessen the First Amendment interest:

> Does anyone think a speechwriter loses his First Amendment right to choose for whom he works if he accepts money in return? Or that a visual artist who accepts commissions from the public does the same? Many of the world's great works of literature and art were created

91. *Id.* at 596 (majority opinion) (quoting *Barnette*, 319 U.S. at 634) (second alteration in original). The case upon which the two decisions cleave is *FAIR*; the majority sees it as clearly distinguished because Smith's activity is core expressive activity and *FAIR* spoke only to incidental conduct, whereas the dissent sees it as a clearly analogous case regarding the lower bar that legislation that only incidentally chills speech must face.

92. *See id.* at 637 (Sotomayor, J., dissenting). One could draw an analogy with *United States v. O'Brien*, 391 U.S. 367 (1968). A decision to safely burn plain paper as part of an act of political expression would be unequivocally expressive, and the decision to suppress such a burning because the government disagreed with the message would be unequivocally unconstitutional. However, because in *O'Brien* the state had a weighty and particular interest in protecting *that piece of paper* (a draft card) from destruction that had nothing to do with expression, the expressive potential was subordinated to the state's interest, despite the incidental chilling of speech.

> with an expectation of compensation. Nor, this Court has held, do speakers shed their First Amendment protections by employing the corporate form to disseminate their speech. This fact underlies our cases involving everything from movie producers to book publishers to newspapers.[93]

This captures the seminal move of the majority—analogizing the offering of a commercial service (whose contestably "creative" character the majority emphasizes, but the dissent declines to acknowledge)[94] —to central acts of cultural creation and core modalities of independent speech.

The dissent, conversely, emphasizes that the speaker acted "for[ ] profit,"[95] and analogizes to cases in which expressive (associational) protection was declined to commercial entities that wanted to discriminate.[96] The dissent distinguishes, rather than challenges, *Hurley* and *Dale* as involving "private, nonprofit expressive associations" as opposed to the "clearly commercial entit[y]" of 303 Creative.[97] The dissent further emphasizes that Smith is accessing a public market and that all legal consequences—a requirement to obey an instruction not to discriminate—flow entirely from this access to the public sphere. Were she to cease accessing this public sphere of commerce by declining to seek clients on the open market, she would cease to be subject to public accommodation law and could discriminate as she liked.[98] Thus, the real significance of the dissent's invocation of commercial status appears to be the characterization of the regulation at issue. The regulation of vendors is meant to prevent discrimination, not to chill speech. Thus, subjecting the public accommodation law to strict scrutiny as governmental suppression of speech is analytically inapposite. The most constitutionally significant implication of this is that because the consequence

93. *303 Creative*, 600 U.S. at 594.

94. *Id.* at 589–90, 599.

95. *Id.* at 624 (Sotomayor, J., dissenting).

96. *Id.* at 620–22 (citing Runyon v. McCrary, 427 U.S. 160 (1976); Roberts v. United States Jaycees, 468 U.S. 615 (1984)).

97. *Id.* at 634–35 (Sotomayor, J., dissenting). An analogy can be drawn to speech made by the government. *See* Michael Kang & Jacob Eisler, *Rethinking the Government Speech Doctrine, Post-Trump*, 2022 U. ILL. L. REV. 1943, 1947 (2022); Walker v. Tex. Div., Sons of Confederate Veterans, Inc., 576 U.S. 200, 207 (2015). The classification of commercial activity as public, however, involves a much conceptually deeper claim, as elaborated in Part III below.

98. This analysis has peculiar implications. The dissent observes that a creator ("Steven Spielberg or Banksy"), *303 Creative*, 600 U.S. at 629 (Sotomayor, J., dissenting), who discriminated against protected groups as clients but did not hold their services out to the public, would not fall under the ken of public accommodation law, *id*. The distinction hangs on the principle that it would be clearly unconstitutional to require an artist to create or not to create art with particular content. But if such activity is expressive, it is unclear why Smith's conduct—despite being the result of public-facing commercial activity—is not as expressive and does not receive such protections. The only formal difference for Steven Spielberg or Banksy is that the public accommodations legislation does not touch them, not whether their conduct is protected. If it is protected, it should protect Smith's public-facing activity just as much.

of the regulation is only to demand non-discriminatory vending, the regulation is "content neutral" and speech chilling is "incidental"[99]—two features that support a less demanding treatment of the legislation. These properties also buttress the claims that Smith's activity is conduct rather than speech.

The disagreement over the significance of Smith's profit motive appears to have the most explanatory potential. Yet the nature of the analysis suggests the two sides are adopting different categorical frames of analysis. The majority rejects any differentiation between commercial and non-commercial activity for the purposes of First Amendment analysis and thus, per generic constitutional norms, closely scrutinizes the legislation at issue because it might burden the expression of certain ideas. Conversely, because the dissent identifies the purpose of the legislation as advancing non-discrimination in commerce, it rejects that its primary effect is to chill speech. It thus uses the commercial focus of the legislation as a basis for adopting the most lenient constitutional analysis of the government's action. The two sides do not merely disagree on the significance of the status of the actor as commercial. Rather, they disagree on the *type* of analysis that follows from this classification. For the majority, status as commercial bears upon the question of the level of First Amendment protection—and thus makes no difference. For the dissent, the status as commercial serves as an indicator for the character of the legislation at issue, thus shaping the degree of constitutional scrutiny (content-neutral) and the characterization of the effect (incidental) upon the burdened speaker.

D. *The Disjointedness of the Standard Narrative*

The majority and dissent in *303 Creative* do not merely disagree; they do not even address the same problem. Consequently, it is difficult to draw any clear precedential rule from *303 Creative* because each side adopts legal analysis that simply seems to support its desired conclusion.

Yet such a lack of coherence, even in the terms of the disagreement, marks the evolution of public accommodation law more generally. The treatment of public accommodation has not reflected prolonged engagement with a consistent set of constitutional questions. The *Civil Rights Cases* hamstrung early efforts to establish a consistent regime through a questionable narrowing of the scope of the Reconstruction Amendments. During the Civil Rights era, the Court changed its substantive position by only invoking the Commerce Clause to sustain public accommodation and leaving the narrow reading of the *Civil Rights Cases* intact (at least as a formal matter).[100] The latest swing of limiting the scope of public accommodation law because of First Amendment

99. *Id.* at 635.

100. Richard A. Primus, *The Riddle of Hiram Revels*, 119 Harv. L. Rev. 1681, 1717 (2006).

rights of discriminatory vendors only adds another separate layer of constitutional analysis.[101] It leaves the *general* regime intact but begins, through an unrelated constitutional mechanism, to cut out swaths of indeterminate sweep where public accommodation law does not apply.

Thus, the three eras of public accommodation law reflect three disjointed modalities of constitutional analysis. The tangling of the themes within each opinion, and that each opinion identifies two fundamentally different constitutional principles at play, suggests that the law addressing public accommodations has not produced a coherent frame of analysis. The disjointed historical evolution of public accommodation law is thus paralleled by a lack of order in its contemporary application.

III. Commercial Activity and its Contested Status as a Bastion of Liberty

Is there any unifying constitutional theme, either within *303 Creative* or across the sweep of the law? The profit motive disagreement in *303 Creative* provides a hint. It is the least formalist—which is to say, the most morally substantive—point of contention. This points more broadly back to the distinguishing feature of the category of action that is being regulated: *commercial* activity that is specifically the central subject of public accommodation law. While formally constrained by the stipulated facts, the dissenters in *303 Creative* indicate a strong inclination to find commercial activity as a category to lack default expressive status, at least when it is socially destructive (i.e., discriminatory)—whereas the majority lionizes the role commercial activity can have in creative acts and thereby affirms its status as deserving protection from state interference.

The question of whether commercial activity should enjoy protection from state overreach provides a new lens on the evolution of public accommodations jurisprudence. The prevalent question at each critical moment has been if commercial activity should be subject to state oversight to achieve equality, or if such activity falls outside the legitimate scope of governmental power. This classification of commercial activity as public or private bears on two higher-order questions: a constitutional question of the degree to which commercial activity (and related questions of property ownership and economic activity) offers rights-like protection against the state; and a normative theoretical question of if commercial activity has its ultimate origin in private productive activity that occurs outside of state oversight (and thus should offer such rights protection), or if it is generated by and dependent upon collective civic coordination (and thus can be legitimately structured by state action).

101. As Kendrick & Schwartzman observe, *Masterpiece Cakeshop* advanced a similarly confusing proposition: that such claims must be treated with due respect as a matter of optics. Kendrick & Schwartzman, *supra* note 70, at 135, 170.

This question of the ontology of commercial activity is determinative of the dispute in *303 Creative*. It is also a central subject of modern intellectual history and contemporary legal analysis. To clarify this analysis, this Part offers an overview of the debates over commercial and economic activity that contextualize, and ultimately inform, the Supreme Court's tectonic decisions regarding the legitimate scope of public accommodation law.

A. *A Bulwark of Liberty? Why the Public/Private Status of Commercial Activity Matters*

To understand the legal and constitutional significance of the public/private divide, it is critical to understand how commercial activity can play the role of a bulwark of personal liberty if it is deemed private. Conversely, if commercial activity is deemed an extension of the public sphere, it is a matter of civic design and thus legitimately shaped by governmental ordering and, through such political intervention, dominant social values.

This distinction has relevance in the broader constitutional order and the judiciary's protection of liberty and limited government. The prevalent function of the judiciary in constitutional adjudication is to interpret the permissible extent of government action, and thereby to offer a checking mechanism of the potentially domineering, popularly empowered political branches.[102] This checking function has multiple forms. The most direct and characteristic mechanism of judicial limitation of state action is rights protection. While the state is *generally* authorized to act in the name of the majority that has democratically empowered it, this general authorization must yield to individual liberty where the individual can assert a countervailing right. Ronald Dworkin offers the seminal such account of rights as "trumps" individuals can hold against the state.[103] Yet this checking function can also operate through other legal and constitutional principles. Principles such as a requirement of standing or the structural maintenance of federalism have also been identified as performing this function of limiting the scope and realization of government power and thus preserving liberty.[104] As discussed below, one such principle, the state action doctrine, profoundly shaped

102. Ely, *supra* note 22.

103. Ronald Dworkin, Taking Rights Seriously, at xi–xii (2d ed. 1978); Ronald Dworkin, *Rights as Trumps*, *in* Theories of Rights 153, 153–54 (Jeremy Waldron, ed., 1984).

104. *See, e.g.*, Antonin Scalia, *The Doctrine of Standing as an Essential Element of the Separation of Powers*, 17 Suffolk U. L. Rev. 881, 894–95 (1983) (explaining how the standing doctrine serves separation of powers, and thereby ensures courts perform their central role of "protecting individuals and minorities against impositions of the majority"); James F. Blumstein, *Federalism and Civil Rights: Complementary and Competing Paradigms*, 47 Vand. L. Rev. 1251, 1252 (1994) (describing how federalism may perform, through decentralization, the role of protecting individual liberty).

the early history of public accommodation law[105] and has survived as a general principle despite broad rejection of it in the context of public accommodation.

Whether the judiciary identifies commercial activity as public or private profoundly shapes its role in this project of defining the scope of governmental power. If commercial activity is private, it should enjoy protection from intrusive government action. The most obvious expression of this is that if commercial activity is identified as private action, it can bear rights, such as free expression in *303 Creative*.[106] The classification of commercial activity as private also informs constitutional principles that limit governance. The decisive move of the *Civil Rights Cases* was distinguishing between civil and social rights—and identifying social rights as a matter of private action. Underlying this is the conclusion that commercial activity is a private activity that is not part of the shared realm of civil life.[107] In both instances, the classification of commercial activity as private served to limit governmental authority and thereby preserved a domain of private liberty against state ordering by public accommodation law. While the invocation of that liberty—to achieve discriminatory ends—may have been profoundly distasteful, this did not shape the preeminent constitutional principle that the *general* principle of limited government trumps the desirability of policy that the government may wish to pursue or the objectionable content of the private action.

Conversely, if commercial activity simply expresses civic collective organization, it is not a logical conduit for limiting government to ensure personal liberty. Rather, it is a legitimate subject of state ordering through expression of majoritarian will. While the parties' stipulation in *303 Creative* that the conduct at issue was expressive limited the dissent from making this argument directly, it is clearly part of the normative thrust of the dissent.[108] If accepted, this premise is devastating for any First Amendment claim; the entire *domain* of commercial activity is ontologically public and thus not logically subject to a principle of limited governance.[109] Rather, commercial activity is a product of, and thus legitimately entirely subject to, ordering by collective cooperation.

105. *See supra* Section II.B.

106. A comparison with *O'Brien* is informative. Because in *O'Brien* the Court concluded that preserving the physical integrity of draft cards reflected a "substantial governmental interest"—in other words, was a public matter—the expressive decision to burn it did not gain constitutional protection. United States v. O'Brien, 391 U.S. 367, 381–82 (1968).

107. *See infra* Section IV.B.1.

108. *See* 303 Creative LLC v. Elenis, 600 U.S. 570, 608–09 (2023) (Sotomayor, J., dissenting) (see *infra* Section IV.A.2 for a more extensive discussion of this principle).

109. An analogy can be drawn to the Court's decision to decline asserting First Amendment protections where speech is defined as state action. *See, e.g.*, Pleasant Grove City v. Summum, 555 U.S. 460, 464, 467 (2009) (governmental speech does not receive First Amendment protections); *see also* Kang & Eisler, *supra* note 97, at 1950–54 (explaining why government speech is not regulated by the First Amendment, the

A similar principle undergirds the invocation of the Commerce Clause to vindicate the 1964 CRA. The Commerce Clause identifies interstate commercial activity as a matter of legitimate federal interest and thus subject to governmental oversight. The principle is that because it bears upon shared social organization, commercial activity of such a character may be legitimately required to conform to public norms.

B. *Modern Intellectual History*

The classification of commercial activity as public or private is thus decisive of its constitutional treatment. The subject question is *how* the classification of commercial activity operates. This is a question with an extraordinary intellectual pedigree. The question of whether commercial activity, and the property ownership and economic sphere of which it is a part, have been central preoccupations of theorists of the human condition (economists, philosophers, and lawyers) for centuries. Despite the oceans of ink that have been spilled regarding it, it remains a core point of dispute. It also provides an organizing axis for the form this debate has taken on the Court regarding public accommodations.

1. Summarizing Two Visions

This debate is sufficiently complex—and any recounting of it that this Article can provide sufficiently abbreviated—that it is useful, as a signpost, to contrast two synthetic visions offered by leading scholars. Eric Mack offers an account of John Locke's vision of commercial society that, in line with Locke's individual liberalism, emphasizes the authority that each individual has over their own affairs in commercial society:

> Central to Locke's liberal individualism is his endorsement of each individual's pursuit of both temporal and eternal happiness, and the moral rights that immunize individuals from interference in their pursuit of happiness – especially the moral rights of property and contract – and his radical limitations of governmental authority to the promulgation and enforcement of "laws of liberty" that "secure protection and incouragement to the honest industry of Mankind". These central features of Locke's liberal individualism underwrite his support of commercial society, to be understood as a social-economic order many members of which engage in extensive marketplace economic interaction on the basis of their acquisition and exercise of private property and contractual rights. The moral rights and the protective legal framework affirmed by Lockean liberalism provide the moral and institutional framework for commercial society.[110]

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history of the government speech doctrine, and the tensions between private speech and government speech).

110. Eric Mack, *John Locke's Defense of Commercial Society: Individual Rights, Voluntary Cooperation, and Mutual Gain*, *in* WEALTH, COMMERCE, AND PHILOSOPHY: FOUNDATIONAL THINKERS AND BUSINESS ETHICS 157, 176 n.1 (Eugene Heath & Byron Kaldis eds., 2017) (quoting JOHN LOCKE, SECOND TREATISE ON GOVERNMENT, § 42

In Mack's recounting of Lockean liberalism, the starting moral principle is self-ownership. From this self-ownership flows property ownership (famously through the mixing of labor with the natural world).[111] It is the interaction of persons who have a right to individual property as a function of their free choices that makes up commercial society. Thus a "tracing" of the origins of ownership leads to the conclusion that the commercial sphere is private. The purpose of law is to protect these free personal choices and facilitate their realization.

This vision can be contrasted with a summary of the role of the state (and legal structures) in mature commercial society offered by Debra Satz:

> Initially markets may be thrown up spontaneously, but in the end they are socially sustained; *all* markets depend for their operation on background property rules and a complex of social, cultural, and legal institutions. For exchanges to constitute the structure of a market many elements have to be in place: property rights need to be defined and protected, rules for making contracts and agreements need to be specified and enforced, information needs to flow smoothly, people need to be induced through internal and external mechanisms to behave in a trustworthy manner, and monopolies need to be curtailed.
>
> . . . .
>
> The fact that laws and institutions underwrite market transactions also means that such transactions are, at least in principle, not *private* capitalist acts between consenting adults, as the libertarian philosopher Robert Nozick famously claimed, but instead a *public* concern of all citizens . . . .[112]

In Satz's view, commercial society is *dependent upon and largely fabricated by* collective civic social structures. While it may reflect the private will of individuals (the source of its unique efficiency), its dominant characteristic is state-supported, and thereby public.

These diverging views have both descriptive and normative elements. The descriptive question is, "What are the foundations of property ownership and commercial society?" The Lockean–Nozickean view, summarized by Mack, identifies private self-ownership and individual autonomy as the foundation. Satz, conversely, identifies collective authorization and state enforcement of legal rules and the political coercive apparatus as the foundation. The contrasting normative treatments correspond to this descriptive divergence. In the Lockean–Nozickean view, property and commercial interactions reflect private rights held by individuals, traced back to their individual pre-political decisions. There is

(Dave Gowan & Chuck Greif eds., Project Gutenburg 2003) (1690), https://www.gutenberg.org/files/7370/7370-h/7370-h.htm [https://perma.cc/X9KS-E6FH]).

111. LOCKE, *supra* note 110, § 27. The most famous contemporary extrapolation of this is ROBERT NOZICK, ANARCHY, STATE, AND UTOPIA (1974), discussed below.

112. DEBRA SATZ, WHY SOME THINGS SHOULD NOT BE FOR SALE: THE MORAL LIMITS OF MARKETS 16 (Samuel Freedman ed., 2010).

a normative argument for treating commercial activity as a domain of private right that can legitimately exclude others, including the state. As such, commercial society and its roots in property ownership are a logical vehicle for bearing rights. Conversely, in Satz's account, markets are a public creation, and commercial society can be legitimately shaped and reshaped by collective civic agreement—of which the state is the dominant expression. In this view, treating commercial society or its subcomponents (such as property rights) as private and rights-bearing fundamentally miscategorizes them. This divergence captures the essence of the progressive–libertarian debate. And the resolution of the normative question—which rests derives from descriptive assertions—offers the best account of the debate on the Supreme Court.

2. Liberalism and Commercial Society

The nature of the political order and its relationship to commercial society is the dominant topic of Western social science.[113] This brief curated account highlights the main themes on these topics. The most novel contribution of this Article to the understanding of liberalism and commercial society is how the Supreme Court's specific struggle over public accommodation *reflects* this central debate in Western political thought. The political theory recounted herein provides the best framework for making sense of the doctrine.

Liberalism is the defining philosophy of modernity. Its foundational commitment is to personal "liberty of conscience and freedom of thought," made possible by the splintering of the monolithic spiritual ideology of the Reformation.[114] One central aspect of this personal liberty is physical self-ownership. A person has moral authority over their body but also those parts of the material world over which they fairly declare authority—in other words, that which they own.[115] The seminal account of how this comes to pass is given by Locke's account of the right to property:

> [E]very man has a property in his own person: this no body has any right to but himself. The labour of his body, and the work of his hands,

113. The leading contemporary thinker regarding liberalism generally is likely John Rawls. *See* JOHN RAWLS, POLITICAL LIBERALISM, at xiii-xxxiv (Expanded ed. 2005) [hereinafter RAWLS, PL] (providing Rawl's own terse account of pre-liberal politics); JOHN RAWLS, A THEORY OF JUSTICE 3 (Revised ed., 1999). Nozick, discussed *passim*, is Rawl's main rival in offering a prevalent contemporary account of liberalism. For a leading account of the relationship between politics and commercial society, see ISTVAN HONT, POLITICS IN COMMERCIAL SOCIETY: JEAN-JACQUES ROUSSEAU AND ADAM SMITH 1–2 (Béla Kapossy & Michael Sonenscher eds., 2015). Many other leading thinkers are discussed in the two sections that follow.

114. RAWLS, PL, *supra* note 113, at xxvi.

115. That persons can legitimately exert authority over non-persons is a function of persons' status as reasoning, and non-persons (inanimate objects, plants, and animals) as lacking reason. The general foundations of this can be traced to IMMANUEL KANT, THE METAPHYSICS OF MORALS (1797), *reprinted in* IMMANUEL KANT: PRACTICAL PHILOSOPHY 353, 600–03 (Mary J. Gregor ed., trans., 1996).

> we may say, are properly his. Whatsoever then he removes out of the state that nature hath provided, and left it in, he hath mixed his labour with, and joined to it something that is his own, and thereby makes it his property. It being by him removed from the common state nature hath placed it in, it hath by this labour something annexed to it, that excludes the common right of other men . . . .[116]

This famous passage captures the basic link between liberal individualism and property ownership. Moral autonomy yields not only the authority of a person to freely do what they wish within their own body but also to claim right over property (at least until it intrudes upon the legitimate, similarly founded rights of others). There is a direct link between this normative commitment and the sort of judicially enforced private rights that the majority advances in *303 Creative*. As Mack speculates, while Locke's theory of property leads to a conception of commercial society, "Locke's primary self-conscious purpose in defending robust private property rights was to limit radically the scope of monarchical authority."[117] Locke's own theory of private property rights was advanced to limit a potentially tyrannical government. At the level of social interaction, commercial exchange consists of individuals engaging in autonomous, and thus morally legitimate, activity of a private nature. Commercial authority in this view is as much a matter of private right as any other expression of individual autonomy (such as freedom of speech or thought).[118] Such view underlies the characterization of commercial activity as "social," and thus beyond the ken of Congressional regulation in the *Civil Rights Cases*.

Yet theorists who followed Locke observed that commercial society and property rights reflect a complex array of social dynamics. These dynamics complicate the claim that either property ownership or commercial society can be treated as pure realm of private right. The greatest authority on these dynamics is Adam Smith. Despite his association in the popular imagination with libertarian thought,[119] Smith's most influential contribution was to observe the mix of self-interest and sociability that sustains commercial society. Smith observed that even in the absence of mutual affection, a society could persist if its members

116. Locke, *supra* note 110, § 27.

117. Mack, *supra* note 110, at 159.

118. This robust view of property rights, and subsequent conception of commercial activity as defined by interaction among free private actors, remains influential (if hotly contested) today, with its most direct descendants being libertarians such as Nozick. Other theorists make philosophically analogous claims about the relationship between property and self-determination. *See, e.g.*, Georg Wilhelm Friedrich Hegel, Hegel's Philosophy of Right ¶ 41 (T.M. Knox trans., Oxford Univ. Press 1967) (1821); Gregory S. Alexander, *Property's Ends: The Publicness of Private Law Values*, 99 Iowa L. Rev. 1257, 1267 (2014).

119. Many have critiqued or nuanced, claims the affiliation of Smith with libertarianism. *See, e.g.*, James R. Otteson, *Adam Smith's Libertarian Paternalism*, *in* Oxford Handbook of Freedom 239, 252 (David Schmidtz & Carmen E. Pavel eds., 2016) (explaining the confluence of Smith's political and economic communities).

pursued self-interested, "utility-based sociability."[120] In Smith's view, a society is *most* comfortable if its members arrange society thanks to sentiments of mutual beneficence; but so long as there is the absence of positive animus among members, thanks to the productive benefits of cooperation, self-interest will yield a sustainable, if "not very comfortable . . . commercial society."[121] The innovation of Smith, however, is that there must be *social* background conditions—specifically a minimum of mutual respect and tolerance—for commercial society to survive.[122]

The most radical shift in the history of commercial society occurred when a new set of thinkers sought to demonstrate the moral illegitimacy of commercial society, and thence to advocate for its destruction. Most influential among these thinkers is Karl Marx.[123] Marx most famously claims that capitalist labor inevitably involves exploitation of laborers by owners of capital and that the logical culmination of class conflict is for the working classes to turn upon their plutocratic employers and seize the means of production.[124] Yet underlying these normative and activist exhortations is a radicalized form of the Enlightenment observation that property ownership and commercial society have collective institutions as a precondition.[125] Marx replaced the observation that there is a collective *precondition* for the realization of private self-interest with the claim that social organization—including commercial society—is wholly *overdetermined* by social circumstance. In Marx's view, "men are not free to choose *their productive forces* . . . already acquired, by the social form which exists before they do, which they do not create, which is the product of the preceding generation."[126] Individuals do not own property, engage with commercial society, or engage in productive activity as autonomous Lockean agents realizing individual will, but as "social individuals" in particular stages of "social development."[127]

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120. HONT, *supra* note 113, at 10 (quoting ADAM SMITH, *The Theory of Moral Sentiments*, *in* THE GLASGOW EDITION OF THE WORKS AND CORRESPONDENCE OF ADAM SMITH II.ii.3.1. (D.D. Raphael & A.L. Macfie eds., Oxford Univ. Press 1976)).

121. *Id.* at 9.

122. *See* JEDEDIAH PURDY, THE MEANING OF PROPERTY: FREEDOM, COMMUNITY, AND THE LEGAL IMAGINATION 12 (2010).

123. This synthesis uses Marx as a synecdoche for a much broader radical left movement that ranges from socialism to anarchism. The general spirit of this movement is encapsulated by Pierre-Joseph Proudhon's famous declaration that "property is theft." PIERRE-JOSEPH PROUDHON, WHAT IS PROPERTY? 197–202 (Donald R. Kelly & Bonnie G. Smith eds., trans., Cambridge Univ. Press 1994) (1840).

124. KARL MARX & FRIEDRICH ENGELS, MANIFESTO OF THE COMMUNIST PARTY (1848), *reprinted in* THE MARX-ENGELS READER 473, 480 (Robert C. Tucker ed., 2d ed. 1978).

125. For a discussion of the relationship between Marx and Smith, see, e.g., Dionysios G. Drosos, *Adam Smith and Karl Marx: Alienation in Market Society*, 4 HIST. ECON. IDEAS 325 (1996).

126. KARL MARX & FRIEDRICH ENGELS, SOCIETY AND ECONOMY IN HISTORY *reprinted in* MARX-ENGELS READER, *supra* note 124, at 136–37.

127. KARL MARX & FRIEDRICH ENGELS, GRUNDRISSEE, *reprinted in* MARX-ENGELS READER, *supra* note 124, at 221, 223.

The polemical elements of Marxist theory aside, its defining feature is a description of commercial society as *collective-determined*, rather than as a function of individual autonomy.[128] It describes commercial society as wholly public, insofar as it is determined by the shared social circumstances. Such a conception eliminates the possibility that property or commercial activity could serve as a bearer of individual rights because there is no opportunity in the account of social activity for the individual to possess such rights. Indeed, the concept of a trumping right by an autonomous actor has little space in a Marxist account, insofar as it declares that human beings are entirely defined by social circumstance.[129]

A final coda in this narrative is the pushback against Marxist thought in the 20th century. Scholars such as F. A. Hayek challenged both the descriptive and normative foundations of Marxist collectivism-determinism.[130] This did not consist of a naive defense of the early Modern and Enlightenment thought experiments regarding pre-social human conduct, but rather the observation that a normatively desirable and descriptively successful social organization will have two interrelated pillars: recognition of individual right and avoidance of centralized planning in economic affairs. Rejecting the Marxist idea that social theory can be exhaustively understood, and thus centrally planned, he argued that social orders emerge from spontaneous interactions between individuals.[131] This idea of a self-generating order has a genealogical relationship to Smith's description of commercial society as emerging from the interaction of self-interested individuals.[132] Further reacting to the post-Marxist claims of centralized organization, Hayek sharpens the claim that overemphasizing the public aspects of commercial society threatens its very existence.[133] Well-organized society nourishes the capacity of individuals to freely coordinate. The most important functions of centralized institutions (such as the state-enforced law) are to create background conditions that enable individual

128. *Id.* at 284–87.

129. At the beginning of the *Grundrisse*, Marx denigrates the individualist Lockean conception of the individual mixing their labor with the world to produce property as not merely unrealistic but absurd. *Id.* at 222.

130. Hayek's central target is socialism writ large, but this is largely synonymous with Marxism. *See* F.A. HAYEK, THE ROAD TO SERFDOM 74-82 (Bruce Caldwell ed., 2007) [hereinafter HAYEK, THE ROAD TO SERFDOM]; 14 F. A. HAYEK, LAW, LEGISLATION, AND LIBERTY (2013), *reprinted in* THE COLLECTED WORKS OF F. A. HAYEK 529–32 (Jeremy Shearmur ed., 2021) [hereinafter HAYEK, LAW, LEGISLATION AND LIBERTY].

131. HAYEK, LAW, LEGISLATION, AND LIBERTY, *supra* note 130, at 53; *see also* Richard A. Posner, *Hayek, Law, and Cognition*, 1 N.Y.U. J. L. & LIBERTY 147, 147 (2005) (explaining Hayek's theory that socialism is unworkable because it does not account for the individuals who engage in the economy).

132. *See* Steven Horwitz, *From Smith to Menger to Hayek: Liberalism in the Spontaneous–Order Tradition*, 6 INDEP. REV. 81, 95 (2001).

133. This is most polemically expressed in HAYEK, THE ROAD TO SERFDOM, *supra* note 130, at 72.

liberty.[134] Hayek does not naively disregard the public aspects of commercial society, but argues their purpose is to enable private liberty. Thus, contra the Marxist view that eliminates the private aspects of commercial society and with it the prospective importance of private rights, Hayek prioritizes them. The result is a return to the moral status of commercial society and private property that echoes its early liberal genesis in Locke.[135]

3. Commercial Society in Contemporary Legal Thought

It would be possible to incisively reframe the debate over personal right and public accommodations using this historical narrative alone; the contrasting values of Marx and Hayek are rough fits to the interests reflected in *303 Creative*, though only at a high level of abstraction. However, this debate between the private and public conceptualizations of commercial societies has continued into the contemporary legal academy, which provides a more accurate fit to the current debate. Insofar as the contemporary legal debates over property are framed in the familiar concepts of rights and the appropriate scope of governmental authority, they map directly onto the legal dispute of *303 Creative*: is commercial activity a domain forged in private right and worthy of judicial protection, or is it a public project that can be legitimately shaped by the collective will of politics?

As this struggle takes place among *legal* scholars specifically, it gains an additional layer. The social theorists discussed in the previous question first answer a descriptive question: what is the nature of commercial activity? These social theories then offer normative claims regarding morally legitimate consideration of and policy regarding property ownership and economic conduct. Legal scholars, logically enough, add a further layer: how should legal and constitutional interpretation make sense of the nature of commercial society? This interpretive layer rests atop answers to the descriptive and subsequent normative assertions. However, legal thinking—particularly by courts—often subsumes these descriptive and normative layers and pitches its analysis as a matter of pure constitutional reasoning.[136] Linking the philosophical debate to the legal debate establishes the connections between these three layers, and thus how the debate over commercial society itself determines the struggle over public accommodations.

A prevalent view in the legal academy, particularly in response to trends such as the Supreme Court's expansion of the scope of property

134. F.A. HAYEK, THE CONSTITUTION OF LIBERTY (1960), *reprinted in* 17 THE COLLECTED WORKS OF F.A. HAYEK 123–24 (Ronald Hamowy ed., 2011). For the relationship between individual liberty and spontaneous social organization, see *id.* at 206–07.

135. *See* John Gray, *Hayek on Liberty, Rights, and Justice*, 92 ETHICS 73, 84 (1981).

136. According to some prominent accounts of jurisprudential thinking, this is precisely what courts are *supposed* to do. *See* DWORKIN, *supra* note 78, at 255–56.

rights,[137] is that commercial society and the property rights that underlie are the creation of, and ought to serve, collective interests. As such, this view argues that legal interpretation should allow for the civic curation of capitalism and economic forces by political and legal institutions.[138] Correspondingly, this view brushes to the side the virtues of treating commercial society as a zone of private enterprise, and property as a critical source of private rights. This view may have its most coherent advocates in members of the Law and Political Economy ("LPE") project, who have openly argued that conceptualization of economic relationships is pathological and allows for private forces to illegitimately suppress civic interests.[139] They accuse the contemporary Supreme Court in particular of "*shielding* economic power from political disruption, even when the invalidated political action is aimed at achieving a value basic to democracy."[140] They further suggest that liberalism made a basic mistake of conceiving of the market as "a domain of uncoerced individual consent"[141] and disregarding the inequities in power it sustains—thereby rejecting the basic Lockean–Nozickean premise. As a positive remedy to the inequities privately conceived markets can produce, these scholars advocate for drastic civic interventions such as "direct provision, robust income support, or egalitarian wealth distribution."[142] Correspondingly, they lambast the Supreme Court for "encas[ing] forms of private, material power" through legal interpretation that tends against proactive correction of economic inequities.[143] This LPE view crystallizes and generalizes a widely held view[144]

137. This is often characterized as a rebirth of Lochnerism. *See* sources cited *supra* note 5.

138. *See* sources cited *supra* note 5.

139. Jedediah Britton-Purdy, David Singh Grewal, Amy Kapczynski & K. Sabeel Rahman, *Building a Law-and-Political-Economy Framework: Beyond the Twentieth-Century Synthesis*, 129 YALE L. J. 1784, 1790.

140. *Id.* at 1810.

141. *See id*. at 1813.

142. *Id.* at 1825; *see also* K. Sabeel Rahman, *The New Utilities: Private Power, Social Infrastructure, and the Revival of the Public Utility Concept*, 39 CARDOZO L. REV. 1621, 1626 (2018) (arguing for similarly public interventions in the context of regulation).

143. Britton-Purdy et al., *supra* note 139, at 1808; *see also* Singer, *supra* note 25, 936-37 (attacking the state action doctrine for treating acts of discrimination as private rather than publicly empowered).

144. Scholars have also challenged the conceptualization of property as a private concern in more domain-specific ways, anticipating the dissenters in *303 Creative*. Julie E. Cohen, for example, has argued that the pathological expansion of the First Amendment is a *result* of distributional inequalities, rather than a cause of them. Julie E. Cohen, *The Zombie First Amendment*, 56 WM. & MARY L. REV. 1119, 1120 (2015). Scholars who have expressed anxieties regarding a return to Lochnerite application of property rights have framed it as a return to the idea that private orderings should trump civic decision-making. *See, e.g.*, Mila Sohoni, *The Trump Administration and the Law of the* Lochner *Era*, 107 GEO. L.J. 1323, 1328 (2019); Shanor, *supra* note 5, at 185–86; Lakier, *supra* note 57, at 1334 (explicitly calling for a positive freedom conception of the freedom of speech). Scholars of public accommodations have argued that invocation of property rights to protect discrimination undermines the claim that economic ordering exists in a private realm beyond civic norms and public oversight. Singer, *supra*

that commercial activity and property ownership should be conceived as eminently public in their origins and in their legitimate purposes.[145] Commercial society and property ownership are public in nature (a descriptive claim),[146] and should be treated in a manner that best serves public ends (a normative claim).[147]

Challenging this is the view that property is a critical bearer of private right, which should be defended *from* state interference or public reordering. This view, following on Hayek and Nozick, sees the economic order as reflecting as a matter of fact, and serving to advance as a matter of moral interest and personal autonomy. It thus prefers legal and constitutional interpretation that *defends* property rights from state interference or reordering. Historically, this view sees property as one of the personal bulwarks against a tyrannical government and, as such, is a classical guardian of liberty;[148] in contemporary legal scholarship, it is more typically directed against regulatory overreach. This contemporary view "question[s] the liberals' faith in a political resolution of economic issues."[149] The leading advocate[150] of this view is Richard Epstein, who identifies property (along with life and liberty) as a central subject deserving of rights protection from political coercion.[151]

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note 25, at 1450; Singer, *supra* note 47, at 936–37; Nan D. Hunter, *Accommodating the Public Sphere: Beyond the Market Model*, 85 MINN. L. REV. 1591, 1630–36 (2001). These views share the commitments of the LPE project: that the economic world is a creation of, rather than prior to, the world of civic (i.e., democratic) politics; that shared public values and interests should, as a matter of social justice, be prioritized over private economic interests; and that legal-constitutional interpretation should favor civic collective values over defending private property rights and the independent commercial sphere.

145. In the words of one critical synthesis, "The progressive property movement puts societal interests on par with those of property owners, asserting that the rights of property owners should bow down to broader societal needs and wants." Abraham Bell & Gideon Parchomovsky, *The Privacy Interest in Property*, 167 U. PA. L. REV. 869, 917 (2019).

146. Some have long explicitly stated this view in their defense of robust public accommodation laws. *See* Singer, *supra* note 47, at 938 (describing the "public world of the market"). Yet systemic LPE thinkers take it as a starting point. As Zephyr Teachout and Lina Khan pithily phrase it, "market structure is political." Zephyr Teachout & Lina Khan, *Market Structure and Political Law: A Taxonomy of Power*, 9 DUKE J. CONST. L. & PUB. POL'Y 37, 37 (2014).

147. For an influential philosophical account, see Alexander, *supra* note 118.

148. JAMES W. ELY, JR., THE GUARDIAN OF EVERY OTHER RIGHT: A CONSTITUTIONAL HISTORY OF PROPERTY RIGHTS 5, 11–13 (2008) (role in early American thought and the Founding).

149. *Id.* at 151. For a seminal articulation of this view, see EPSTEIN, *supra* note 55, at 34–35.

150. Others with similarly commitments include RANDY BARNETT, THE STRUCTURE OF LIBERTY, 66–67 (1998) (explaining how property rights are background rights for many other liberal rights); Bell and Parchomovksy, *supra* note 145, at 873 (arguing that the capacity of property to exclude yields unique benefits to aspects of individual autonomy, such as privacy); Bernstein, *supra* note 55, at 23, 33–34 (redeeming *Lochner*'s long-condemned constitutional defense of property rights as a predecessor of contemporary expansion of personal rights generally).

151. EPSTEIN, *supra* note 55, at 314; *see also* Barnett, *supra* note 55, at 441; Marc O. DeGirolami, *Virtue, Freedom, and the First Amendment*, 91 NOTRE DAME L. REV. 1465,

Extrapolating this valuation of property rights to collective commercial organization, he argues that free markets offer a superior mechanism for organizing human activity.[152] The principles of autonomy and efficiency are inextricably linked—protecting personal autonomy through strong property rights ensures efficient outcomes at a collective level.[153] Logically enough, the enforcement of legal rights from such a reading demands strong judicial defense of property and fits with the most common explanation given for property rights from the standard rule of law account: rights protect individuals from state (and collective) oppression. The extension to property rights as a declaration that individuals may invoke them to exclude others, and the state, is distinctive because it allows individuals to extend—in a Hegelian sense—this claim of exclusion further into the world. The debate over public accommodation is precisely a debate over whether this power of exclusion should be respected even where it contravenes widely held social values, such as non-discrimination.

IV. The Nature of Commercial Activity: Re-imagining the Public Accommodations Debate

Recognizing the conceptual primacy and practical significance of the status of commercial activity transforms the narrative of public accommodation law. It allows for a radical unification of its unfolding into a coherent debate. That debate over whether commercial activity is public or private has two layers. The first layer is fundamentally descriptive: is the commercial sphere generated by private action and largely self-sustaining, or is the commercial sphere an emanation of civic cooperation authoritatively curated by and dependent upon the support of the state? The second layer is normative with constitutional-interpretive consequences: if the commercial world is privately sustained, it should be insulated from excessive state interference; but if it is an extension of the state, then the state has the legitimate moral authority to reorder it as dictated by the collective will that informs the state.

A. 303 Creative *as a Struggle over the Status of Commercial Activity*

The debate over commercial activity as public or private brings order to the otherwise confusingly structured opinions, illuminating their underlying logic. The majority opinion defends a conception of commercial activity as a domain of private liberty. In terms of individual instances of conduct, this view identifies the expressive capacity of

1471 (2016) (linking property rights to civil liberties such as free speech); *cf.* Suzanna Sheery, *Property is the New Privacy: The Coming Constitutional Revolution*, 128 Harv. L. Rev. 1452, 1452 (2015) (reviewing *The Classical Liberal Constitution*).

152. Epstein, *supra* note 55, at 40; *see* notes 138–53.

153. *See* Epstein, *supra* note 32, at 1284.

commercial activity; and in terms of collective social organization, it prefers to prevent government control of self-organizing market structures. The dissent, conversely, identifies the market structures that sustain commercial activity as creations of the state that owe their existence to law and thus legitimately subject to political oversight; correspondingly, the dissent is skeptical of the intrinsic expressive potential of commercial activity, at least when it defies widely held collective norms. These contrasting views not only characterize each individual opinion but reveal the true basis of the legal conflict between them.

1. The *303 Creative* Majority Opinion: Free Individuals Creating a Self-Organizing Market

The foundational premise of the majority's opinion is that Smith's provision of a service is an expression of personal liberty. In this view, Smith's commercial activity originates with her creative potential—creative not only in the sense of "artistic," but also in the sense of "economically productive." This might be most apparent where the majority uses the concepts of "express[ing] views" and "provid[ing] . . . services to customers" interchangeably.[154] While the opinion happily leverages the parties' agreed stipulations before the Court that Smith's website design is expressive,[155] it does nothing to read this particular concession narrowly or to contain the case to the stipulation. Rather it generalizes and extrapolates the correlation between expression and commercial activity—in providing a "service," even one ostensibly available to all callers, Smith necessarily deploys her "voice."[156] This conflation imputes to commercial activity the same urgent individual moral dignity and insulation from majority overdetermination typically ascribed to domains identified as central to free thought—speech and religion.[157] Like these domains, the majority suggests that commercial activity is a domain of "liberty of conscience,"[158] which is both a value that animates American moral and political life and must be protected from state domination as a constitutional value.

The implication is that the real reason that Smith's commercial activity is constitutionally protected is not because it is uniquely speech-like but because Smith has engaged in individuated economic production. In this view, individuals' productive activity is a free act that possesses a moral dignity. This dignity entails the liberty of the producer to

154. 303 Creative LLC v. Elenis, 600 U.S. 570, 580 (2023).
155. *Id.* at 587.
156. *Id.* at 592.
157. This is most apparent where the majority glides from the debate over the status of Smith's conduct to the invocation that First Amendment principles protect it. *Id*. at 584–85.
158. For a history of the phrase and its centrality to the First Amendment, see Jonathan Barth, *Liberty of Conscience is Every Man's Natural Right: Historical Background of the First Amendment*, 35 J. POL'Y HIST. 435, 436 (2023).

deploy the productive capacity at their discretion—including the liberty to reject state instruction.[159] *303 Creative* is not the first case to make this point; it is echoed in the Court's characterization of baking in *Masterpiece Cakeshop* as expressive because of the skill of the commercial actor.[160] Together the cases suggest that it is a Lockean mixing of personal labor, not intrinsic speech-like expressiveness, that is the critical feature of commercial activity that the Court will afford rights protection. Like those theorists of commercial activity who wish to define it as private and insulate it from collective intrusion—Locke, Nozick, and Epstein—the Court sees productive activity as a precious domain of personal freedom. Thus, the formalist question of if Smith's activity is speech or conduct is subsumed by the nature of the behavior as commercial. That the activity at issue is ascribed speech-like characteristics that yield First Amendment protections is a *function* of its status as productive personal activity, rather than a *characterization* of activity that would be otherwise legitimately regulable.[161] The first-order feature of activity that makes it an expression of free will, and thus deserving of protection from the state to preserve political liberty generally, is the undertaking of individual productive activity *at all*.

This protectiveness of personal commercial activity is twinned with the majority's inclination to protect the broader commercial sphere from centralized control. This takes one form in circumspect criticism of the growing scope of public accommodation law: even as it recognizes their legitimacy in advancing equality, the majority (1) hints that the growing breadth of public accommodation may be excessive;[162] and (2) warns that the coercive mechanisms that the state may deploy to enforce such laws grossly intrude upon individual liberty.[163] The combined result is that the majority worries these equality-serving laws may become implements of compulsion. This point becomes most explicit when the majority speculates that the result of the application of public

159. Of course, such liberty is limited by *others'* parallel claims to right, but this is protected by private law, not government action. Commercial activity may not, for example, engage in nuisance freely.

160. Masterpiece Cakeshop, Ltd. v. Colo. Civ. Rts. Comm'n, 584 U.S. 617, 626 (2018).

161. The majority does nothing to define when personally productive activity ceases to be private and thus to be used only at an individual's own liberty. The closest the opinion comes to such a distinction is recognizing that Colorado itself declined to describe Smith's conduct as provision of an "ordinary commercial good." *303 Creative*, 600 U.S. at 593. But in rejecting the characterization of Smith's activity as the sale of a homogenous product, the majority does *not* advance a *positive* principle that the sale of homogenous products never has expressive potential. Rather it merely notes that wherever the line of the expressive capacity of commercial activity is defined, Smith's activity lies beyond it. It *might* be possible that a corollary of the majority's reasoning is that the sale of homogenous product is non-expressive and thus can be wholly regulated by public accommodation law—but only where the commercial activity itself is also so homogenous that the commercial actor is wholly alienated from its meaning.

162. *Id.* at 581, 589.

163. *Id.* at 578–79, 588.

accommodation laws would be to compel speech to force creative agents to advance the views of the state.

The *systemic* concern of the majority opinion, therefore, is that the "marketplace of ideas" that operates through commercial activity will become straightjacketed by the dominant state-endorsed perspective. The Court's declaration that the commercial sphere is a vital space of not merely *individual* expression but *unfettered socio-economic development* reveals the alternate social scheme the Court wishes to protect from state overreach: one in which private commercial society is permitted to organically self-organize.[164] The majority's anxiety concerning public accommodation law[165] is a particular version of the systemic anxiety that thinkers such as Epstein and Hayek express regarding centralized economic organization: the state might overdetermine economic conduct and thereby strip away the natural evolution of human sociability. In Nozick's conception, such laws "pattern" the allocation of economic resources.[166]

That the real concern is not suppression of ideas but centralized organization is emphasized by an observation by the dissent:[167] none of these laws actually restrict the range of ideas that any commercial actor might advance *in general*—only how they might do so through their commercial activity.[168] Smith, or any other person or company, could express any view so long as in doing so they did not likewise discriminate in their commercial practices (Smith could as the dissent notes, include on every product she produced a message objecting to gay marriage—so long as she offered the product to all customers regardless of protected characteristic).[169] Yet what such laws do is require commercial activity to conform to certain collectively articulated, coercively enforced standards. They externally homogenize certain aspects of the economy.[170] Such centralized homogenization is the real systemic concern of the majority. They worry that public accommodation law has become a mechanism not for suppressing expression, but for interrupting the otherwise private evolution of the commercial world. It is this anxiety

164. *See id*. at 596 (observing expressive protections extend to the corporate form).

165. *Id*. at 589 ("[A]nyone who speaks for pay on a given topic [could be compelled by the state] to accept all commissions on that same topic.").

166. *See* NOZICK, *supra* note 111, at 160–62.

167. *Id.* at 629–30 (Sotomayor, J., dissenting).

168. One legal analogy—though one the opinions do not pursue—might be that commercial society is an abstract type of public forum, and thus the government may not engage in viewpoint discrimination. *Cf*. Police Dep't of Chi. v. Mosley, 408 U.S. 92, 95–96 (1972) (describing how governments must allow equal protection of expressive speech in public, regardless of subject matter unless there is a compelling government interest).

169. 303 Creative, 600 U.S. at 629 (Sotomayor, J., dissenting).

170. Notably, the majority hints that it finds public accommodation laws most compelling where discriminatory providers might have monopoly power, *see id.* at 590–91 (majority opinion), the inverse parallel of this homogenization concern; though the dissent finds this reading baseless, *id.* at 610–11 (Sotomayor, J., dissenting).

surrounding centralized organization that explains the majority's ending claim that "tolerance, not coercion"[171] should guide the case. The tolerance here is tolerance of spontaneous commercial society free from state guidance.

2. The *303 Creative* Dissent: Preserving Equality of Collective Organization by Collective Action

If the foundational premise of the majority opinion is that commercial activity is a domain of personal liberty, the foundational premise of the dissent is that the commercial sphere is generated by, sustained by, and thus subject to the collective norms articulated by shared public engagement: "[I]f a business chooses to profit from the public market, which is established and maintained by the state, the state may require the business to abide by a legal norm of nondiscrimination."[172] The most important premise of the dissent is that Smith's commercial activity does not "belong" to her, but rather is part of a collective project that must conform to shared norms of dignity and respect for diverse persons—a post-Marxist view of the economic spheres.[173] The collective project is the market generated by the laws and institutions of the state. It thus can be required to conform to the rules that sustain that project—including the commitment to non-discrimination.[174] Underlying this is a different characterization of morally desirable liberalism, prioritizing shared norms of equality over exclusionary private autonomy.

This view lines up with the progressive LPE conception of commercial society[175] and the legitimate authority the state has over it. The core commitments of this progressive view are that (1) the economy is produced by and in the service of collective political will, and (2) because it is such an instrumentality, the state should have the authority to require individuals to conform to the values selected by this political will. In the context of such public accommodation law, where that political will advances the virtue of equality for vulnerable groups, there is no conceptual or moral argument for limiting advancement of that value.

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171. *Id.* at 603 (majority opinion).

172. *Id.* at 609 (Sotomayor, J., dissenting).

173. *Id.* at 640 ("The unattractive lesson of the majority opinion is this: What's mine is mine, and what's yours is yours. The lesson of the history of public accommodation laws is altogether different. It is that in a free and democratic society, there can be no social castes. And for that to be true, it must be true in the public market. For the 'promise of freedom' is an empty one if the Government is 'powerless to assure that a dollar in the hands of [one person] will purchase the same thing as a dollar in the hands of a[nother].'" (quoting Jones v. Alfred H. Mayer Co., 392 U.S. 409, 443 (1968)) (culminating dissenting view) (alterations in original).

174. That the dissent rejects any constitutional protection for the "[b]acklashes" against equality-promoting legislation epitomizes this point. *Id.* at 619. Since the project of commercial society is collective, destructive impulses within it can be legitimately suppressed. But if commercial society were a domain of private liberty, it would precisely be anomalous views that were most deserving of protection.

175. *See* Teachout & Kahn, *supra* note 146.

The democratically authorized state has created a domain of human activity and wishes to ensure that that domain adheres to virtuous, and popularly supported, terms.

The public nature of, and legitimate public authority over, commercial society entails the nullity of Smith's attempt to assert a personal right to discriminate. It is worth noting that the dissent observes how this operates at multiple levels. One is purely ontological: the only constraint she endures is a limit to the terms of her engagement with markets, but the very *existence* of that market is a function of public construction. Without imposing rules on participants, it could not exist. Thus, it is conceptually incoherent to argue that her liberty is infringed.[176] Yet the dissent also emphasizes the moral arguments against affording Smith a right to deviate from the shared values of the market. Discrimination has long been rejected as normatively defensible,[177] and thus it has no place within the cooperative social enterprise of which the market is one facet. Furthermore, as Smith is a participant in this shared project, her desire to discriminate has no normative heft;[178] she must obey the rules of the game. This likewise mirrors the rejection of the vision of the market as a domain of pure personal consent that is a central premise of LPE thought.

This rejection of any claim of liberty a party may make to engage in discriminatory action is not a first-order normative claim (even though it may be first-order normatively desirable on, for example, grounds of dignity). Rather, it reflects the legitimate authority of the collective to use the state to set the terms of its own interaction. The inability of commercial activity to support a claim of private liberty, in other words, does not reflect the badness of the activity at issue. Rather, it reflects the more generalized systemic characterization of the commercial sphere as public in nature, and thus legitimately subject to and structured by shared public norms.

3. Revisiting the Legal Conflict

Recognizing that the true substance of *303 Creative* is the conceptualization of commercial society clarifies the otherwise disorderly contrast between the opinions. Viewed through this lens, it is possible to conclude the two sides "are looking at the same case";[179] they have, however, vastly different perspectives regarding the commercial sphere.

176. *303 Creative*, 600 U.S. at 629 (Sotomayor, J., dissenting) ("[P]etitioners' freedom of speech is not abridged in any meaningful sense, *factual* or legal.") (emphasis added); see discussion *supra* note 109 for the analogy to the government speech doctrine of *Pleasant Grove City v. Summum*, 555 U.S. 460, 464 (2009).

177. *303 Creative*, 600 U.S. at 619 (Sotomayor, J., dissenting).

178. *Id.* at 625 ("The First Amendment does not entitle petitioners to a special exemption from a state law that simply requires them to serve all members of the public on equal terms.").

179. *Id.* at 597.

Whereas the conservative majority begins from the premise that Smith's commercial activity is a realization of private liberty, the progressive dissenters see Smith as a participant in a collectively defined project. For the majority, this act of private freedom deserves protection from governmental overreach. For the dissenters, Smith is a "defector" from the shared norms that allow commercial society to fairly function and who desires to engage in morally illegitimate conduct that impairs this functioning.

The constitutional analysis of both expressive right and the status of public accommodation law flows from these differing characterizations of the commercial sphere. The majority leads by lionizing the value of personal liberty traditionally identified in expressive First Amendment rights and looks with relative suspicion upon state efforts to reshape aspects of the commercial world. Conversely, the dissenters identify public accommodation law as merely one legitimate aspect of collective authority to define shared terms of market practice and thus see no traction in the individual constitutional assertion of right.

Furthermore, the contrasting priorities of the two opinions are reflected in their relative emphases. The majority makes a more normatively palatable claim when it defends the liberty of individual commercial activity; it treads lightly when it must recognize that if this liberty is defended, one product of the self-organizing sphere of commerce may be hurtful discrimination against a vulnerable group. Conversely, the dissent most vociferously advances its claim that markets are a function of shared political cooperation and that they can only function when all participants receive due civic respect. The dissent emphasizes the need to defend these shared values through state action and seeks to circumvent the private and expressive aspects of Smith's conduct.

B. *The History of Public Accommodations Through the Lens of Commercial Activity*

Recognizing the pivotal question of the legal status of public accommodation law is the ontological categorization of commercial activity also clarifies the history of public accommodation law. Beyond offering insights into each domain, this framework provides a lens for the grander organization of the law. Most critically for the purposes of future analysis, it confirms that the battle over the status of commercial society has been the overdeterminative question in public accommodation law.

1. The *Civil Rights Cases*

Turning to the earlier eras of public accommodations jurisprudence shows the same foundational dispute over the status of commercial activity. The decisive legal distinction of the *Civil Rights Cases* was between state action (which can be legitimately regulated by the federal

government under the Reconstruction Amendments) and "private" action of individuals (which can do no more than create an action in trespass).[180] The Court declares matters of economic organization to be substantively determined by private relationships and reflective of private rights. That this analytic distinction is supported by the underlying distinction between "civil" rights that are "essen[tial to] citizenship" and "social" rights that speak to the private relationships of a community.[181] Civil rights are public in nature and can be enforced under the Reconstruction Amendments' scope; social rights are private, and interference with them cannot be so justified.

By declaring public accommodation laws to speak to private relationships governed by social rights (and thus beyond constitutional oversight), the Court declared the relationships of exchange that make up the commercial world to be private in character.[182] While legally this distinction is based on parsing of the Reconstruction Amendments,[183] it rests upon descriptive and normative commitments of economic relationships as privately ordered. The nature of social rights puts them outside of Congress's power under Section 5 of the Fourteenth Amendment and results in the Court refusing to recognize federal authority to advance public accommodation law. The limited scope of constitutional authority places the nature of such relationships into the private realm because they consist of interactions between individuals; correspondingly, it would be a wrongful intrusion into domains of personal liberty for the federal government, with its limited constitutional authority, to dictate such relationships.[184] Indeed, the reclassification is the conceptual ground of Harlan's famous dissent. He agrees with the proposition that social rights and "social relationships" lie beyond the ken of the Reconstruction Amendments, and governmental authority generally, but analogizes access to commercial services as legal and civil rights.[185] His disagreement is not with the *general proposition* that there

180. The Civil Rights Cases, 109 U.S. 3, 17 (1883) ("The wrongful act of an individual, unsupported by [state] authority, is simply a private wrong . . . .").

181. *Id.* at 22. For a full historical discussion of the difference between civil and social rights, see BALKIN, *supra* note 10, at 222–25. For a critical analysis, see PRIMUS, *supra* note 10, at 154–60; *see also* Bagenstos, *supra* note 10, at 1209–12 (discussing the scope of civil rights during Reconstruction); The Slaughter-House Cases, 83 U.S. 36, 76 (1872) (defining civil rights as those falling under the domain of governance).

182. Civil rights in this schema *do* include the basic capacity to *hold* property, such as the right to contract and the right to bring suits to defend property rights. *See* BALKIN, *supra* note 10, at 223. This reflects the observation that preservation of a private property where the state has a monopoly on violence has a certain minimal public character. But in drawing the line between civil and social rights where it did, the *Civil Rights Cases* placed all beyond this minimum into the realm of the private.

183. *See also* The Slaughterhouse Cases, 83 U.S. at 81 (identifying a limited scope for the Reconstruction Amendments).

184. *The Civil Rights Cases*, 109 U.S. at 24–25 (classifying economic along with personal relationships, including those based in racial discrimination, as beyond the scope of the Fourteenth Amendment).

185. *Id.* at 59–60 (Harlan, J., dissenting).

is a zone of private life beyond governmental authority (and certainly beyond the Reconstruction Amendments), but rather with the claim that *commercial relationships* are part of that private world. He argues that they are as much a matter of collective interest as the civil rights to contract and assert property rights that are the bare minimum of governmental intervention to sustain a property regime.

The defeat of the first federal efforts to advance public accommodation thus depended upon an ontological classification and subsequent implications that parallel *303 Creative*. Economic relationships are social, not civil; the social realm is the realm of private liberty; and thus both individual commercial relationships and the broader commercial order should be determined privately. The classification of commercial society in the *Civil Rights Cases* is much broader than in *303 Creative*: the entire sphere of commercial relationships is deemed private and thus beyond the scope of federally enforced equality, as opposed to the mere carving out of a slice through the application of First Amendment rights.

2. The 1964 Civil Rights Act

The Court's invocation of the Commerce Clause to uphold the 1964 CRA radically shifted the normative characterization of commercial activity. The pivotal change is the judiciary's willingness to prioritize the collective origins and public consequences of commercial activity. This, in turn, sustains the constitutional legitimacy of state efforts to dictate terms of commercial society as a matter of political interest. This first move of reclassification of the commercial sphere provides the government with *general authority* to shape the terms of the commercial domain. This point is most explicit in *Jones*, which described how full citizenship has as a precondition non-discriminatory access to the universe of commercial transactions (specifically those related to real property).[186] Access to property ownership is identified as essential to the full civic status that is constitutive of socio-political membership and thus part of the shared project of political self-governance.[187] Since ensuring integrity and legitimacy of this political project is the legitimate domain of governmental authority, and equitable access of each citizen is essential for this project, by transitive logic the government has authority to intervene in the organization of the commercial sphere when it bears on citizens' status in politics. This is the logic of the Commerce Clause that is applied to uphold the 1964 CRA. Being a type of shared "intercourse,"[188] commercial activity is a matter of "national interest."[189]

186. *See* Jones v. Alfred H. Mayer Co., 392 U.S. 409, 423–28 (1968).
187. *See id.* at 431–33.
188. Heart of Atlanta Motel, Inc. v. United States, 379 U.S. 241, 254–57 (1964).
189. *Id.* at 255; *see* Balkin, *supra* note 42, at 39 (describing commercial activity as relevant to "full[] and fair[]" participation in "public life," as "questions of personal liberty . . . to travel, meet, interact, and live with others throughout the country");

This focus on collective manifestation and sociability matches the theoretical conceptualization of commercial society as a social construct, rather than the result of interacting foundationally private and independent choices. The only limitations upon such governmental actions are that they must be "rational"[190] or "reasonabl[e]"[191]—the very features that mark minimally sound discourse that supports collective decision-making. The boundary of such intervention in the commercial sphere, in other words, is the satisfaction of some minimum of reasoned justification that makes the intervention itself socio-politically valid.[192]

This social characterization of commercial society supports the legitimacy of state intervention against discriminatory economic action through public accommodation legislation. By declaring market conduct to be public in character, the Court entails that commercial activity may be ordered by the interests of collective welfare and by the mechanism of majoritarian will. The analytic sequence that legitimated this approbation of political authority over commercial action was: (1) a declaration that such commercial activity is a manifestation of public sociability; and, only then, (2) the conclusion that the *specific* deployment of governmental authority is legitimate.[193] This ontological shift supports the moral judgment that the state has legitimate authority to dictate the terms of commercial conduct. Indeed, the institutional position of the Court in validating public accommodation law indicates that the critical analytic move must be about the character of the subject matter *generally*, rather than specific judicial approbation of the moral content of the legislation.[194] The Court did not decide the *content* of the 1964 CRA and thus could not directly decide the moral nature of the policy. Rather, it merely needed to decide if the moral character of

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see also Newman v. Piggie Park Enters., 390 U.S. 400, 401–02 (1968) (per curiam) (declaring a "Title II suit is . . . private in form only . . . vindicating a policy that Congress considered of the highest priority" and allowing attorneys' fees to be recovered by a plaintiff in a Title II suit).

190. *Heart of Atlanta Motel*, 379 U.S. at 258.

191. *Id.* at 262.

192. An analogy can be drawn to Rawls's argument regarding the need to offer justification for political decisions that others should find compelling. *See* RAWLS, PL *supra* note 113, at 224.

193. *See Heart of Atlanta Motel*, 379 U.S. at 256–59.

194. While the Court explicitly disavowed that its vindication of the 1964 CRA was influenced by Congress's targeting of a "moral and social wrong," such identification of an "evil" is not determinative. *Heart of Atlanta Motel*, 379 U.S. at 257–58. As a matter of constitutional interpretation, the Court had the option of leaning either way. The breadth of the Commerce Clause to address local conduct with interstate effects is well established. *See, e.g.*, Wickard v. Filburn, 317 U.S. 111, 124–25 (1942); *Heart of Atlanta Motel*, 379 U.S. at 258 (citing United States v. Women's Sportswear Mfg. Ass'n, 336 U.S. 460, 464 (1949) for the same proposition). It was a pivotal moral decision to be the Court's increasing unwillingness to permit discriminatory conduct. Yet the Court also had the alternative to identify the commercial justification for a policy addressed to a prevalently moral wrong to be pretextual and lacking an economic nexus, as it did in *United States v. Lopez*, 514 U.S. 549, 567 (1995), and *United States v. Morrison*, 529 U.S. 598, 617–18 (2000).

the relevant subject matter was such that it flipped into the domain of public interest and collective oversight.

Scholars have offered various theories regarding *why* the Commerce Clause has such a social character and thus affords the government moral authority over political choices related to it. Jack Balkin argues that:

> The Commerce Clause empowers Congress to prevent states from exporting elsewhere the problems they create through unwise and unjust social policies. To do this, Congress inevitably must make judgments of morality and policy. That is because one state's externality is another state's liberty. Activities in different states often affect other states, but not all of them justify a federal solution as a matter of sound policy. Congress therefore must decide whether state policies impose real and undesirable effects on other parts of the Union or whether these policies actually preserve local autonomy, economic liberty, and individual choice. One cannot do this unless one makes judgments of what effects are good or bad and what liberties are worth preserving.[195]

In Balkin's view, the collective nature and impact of economic activity affords Congress the moral authority over commerce. Other scholars have made sympathetic claims regarding the moral application of the Commerce Clause as a matter of theory of property rights to ensure "a free and democratic society"[196] or as a matter of defining the acceptable scope of private action in a quasi-public context to ensure the equal "dignity" of all parties.[197]

C. *Beyond Constitutional Formalism: Public Accommodation Jurisprudence as a Struggle over Commercial Society*

Parsing the public/private status of commercial activity clarifies each pivotal shift in public accommodation law. Yet its most useful contribution to this framework is that it *unifies* the evolution of public accommodation law. As Section II.D above demonstrates, the jurisprudential evolution of public accommodation law lacks doctrinal coherence, let alone analytic continuity. However, conceived as a debate over the character of commercial society and the normative consequences of this character, the law of public accommodations assumes remarkable coherence. The decisive question—and, in *303 Creative*, the divisive question—is whether commercial activity is a matter of personal liberty or a shared project of collective will. The former position places it beyond governmental authority and gives commercial activity a significant role in limiting government intrusion into the private sphere. Such

195. Balkin, *supra* note 42, at 38.
196. Singer, *supra* note 47, at 947–48.
197. Linda C. McClain, *Involuntary Servitude, Public Accommodations Laws, and the Legacy of* Heart of Atlanta Motel, Inc. v. United States, 71 Md. L. Rev. 83, 116–18 (2011).

a view will find the anti-discriminatory aims of public accommodation legislation to be noble but treat such legislation with intrinsic suspicion because it could affect governmental overreach. The latter view makes commercial activity a legitimate subject of extensive government regulation and thereby makes public accommodation legislation unproblematic as a normative and constitutional matter. But regardless of which position is ascendant, this debate demonstrates the coherence of the judicial treatment of public accommodation law.

This coherence transforms the judicial treatment of public accommodation law into a lens for the corresponding shifts in legal analysis and social transformation. The classification of commercial society that has been the consistent determinant of public accommodation jurisprudence corresponds to tectonic shifts in constitutional thinking generally. Most broadly, judicial classification of commercial society as private, and the subsequent treatment of it as a bulwark against state oppression, corresponds to periods in which state power generally, and federal power in particular, have been seen with suspicion. The *Civil Rights Cases* occurred against the backdrop of a Court that was generally skeptical of federal efforts to enforce norms of racial equality across society.[198] *303 Creative* itself reflects a conservative court that is increasingly willing to constrain the scope of legitimate governmental intervention, even where such governmental activity can be vindicated by appeals to collective welfare or equitable social ordering.[199] Conversely, the vindication of the 1964 CRA relied upon trust of collective decisions, particularly by the federal government, to advance the public good. The Court's posture thus continues the trend of *West Coast Hotel Co. v. Parrish* that permitted social welfare advancing legislation, while simultaneously expressing the Warren Court's suspicion of partisan or discriminatory interests.[200] These two contrasting traditions contest if governmental pursuit of collective welfare is a normatively legitimate goal or an intrusion upon private self-determination. The classification of commercial society is an expression of this disagreement, as well as a means of advancing the respective view.

The crosscutting nature of this pattern reveals a further implication of the commercial framing: it is fundamentally non-formalist. If the law of public accommodations is determined by a question of social

198. Singer, *supra* note 25, at 1299.

199. The most salient examples of this from recent law include *Students for Fair Admissions v. President and Fellows of Harvard College*, 600 U.S. 181, 230 (2023) and, especially, *Dobbs v. Jackson Women's Health Organization*, 597 U.S. 215, 302 (2022)—which shows that this suspicion of government overreach applies to the judiciary itself. However, there are earlier hints of it in, for example, the Court's unwillingness to expand the use of the Commerce Clause to authorize social welfare legislation in *United States v. Lopez*, 514 U.S. 549, 551 (1995) and *United States v. Morrison*, 529 U.S. 598, 601–02 (2000).

200. This may be the most durable legacy of the Warren Court, from *Brown v. Board of Education*, 347 U.S. 483, 495 (1954), to election law cases such as *Gomillion v. Lightfoot*, 364 U.S. 339, 347 (1960) and *Reynolds v. Sims*, 377 U.S. 533, 568 (1964).

ontology (is commercial activity public or private?) and the implication for the normative legitimacy of governmental intervention (should the state have the authority to shape commercial activity by prohibiting discrimination?), the formal doctrinal analysis is only a shell query. This manifests in the differing doctrinal postures of various interventions. For example, the *Civil Rights Cases* adopted a *narrower* formal view of constitutional right in denying that social rights fell within the scope of the Fourteenth Amendment and thereby denying the federal government authority to advance the right to equality. Conversely, *303 Creative* advanced a *broader* conception of constitutional right in applying it to shield Smith's discriminatory behavior from state regulation. Likewise, the substantive question of the status of commercial society supersedes questions of the source of authority, particularly if the relevant governmental authority is state or legislative. In one sense, *303 Creative* is particularly noteworthy because it is the first case to explicitly limit *state* regulation of commercial activity through public accommodation. Yet if the decisive question is the treatment of commercial society, the state/federal distinction diminishes in ultimate relevance. The particular formal right or level of governmental authority is less relevant than the Court's posture on the nature of commercial society. The commercial society analysis thereby entails a level of anti-formalism.

V. Commercial Society and Legal Analysis: Towards Trans-Doctrinal Constitutional Interpretation

The status of commercial society is the dispositive question for public accommodation law, yet it is a matter of social ontology and its moral implications rather than a typical question of legal or constitutional interpretation. This poses a tension for typical constitutional analysis because the formal doctrinal categories that have determined the status of public accommodations before the Supreme Court have varied widely. If the decisive question is the status of commercial society, it becomes difficult to synthesize a typical doctrinal rule that comfortably guides such analysis. Despite this lack of doctrinal coherence, however, the dominant trend and scholarly reaction are clear enough. The Roberts Court advances the private conception of commercial society as a domain of private liberty. The dominant scholarly response has been anxiety about resurgent Lochnerism.[201] While this is useful in identifying the relevant pattern, the central insight of this Article indicates that the Lochnerist treatment of rights and subsequent deregulatory lawmaking is a *result* of the Court's normative conclusions regarding commercial society, rather than any first-order return by the Court to Lochnerist premises.

201. *See* sources cited *supra* note 5.

Bringing coherence to this struggle requires looking to the constitutional value most affected by the classification of commercial society: political autonomy, the most important value of liberal democratic constitutionalism. This autonomy is advanced in two competing and familiar ways in the classification of commercial society:[202] protection from the state afforded by rights that ensure individuals' zones of autonomy and empowerment of the franchise to realize its will through democratic processes. The relationship between this constitutional value and the classification of commercial society manifests across the areas of doctrine affected by the classification of commercial activity, including *303 Creative* itself. The private conceptualization of commercial activity advances a rights-based vision of autonomy as protection from state overreach, and the public conception of commercial activity advances autonomy by expanding the scope of democratic authority and thereby facilitating realization of popular will.[203]

Recognizing that the most important impact of the classification of commercial activity is upon political autonomy suggests a viable judicial approach. The argument for treating commercial activity as private is strongest where commercial actors are in a more vulnerable position, and the case for treating commercial activity as public is strongest when commercial actors possess broad-based or monopoly power. Furthermore, this approach illuminates the differing treatment of commercial society across the development of law of public accommodations. It suggests the *Civil Rights Cases* made too broad a distinction in excluding social rights from the scope of state oversight; and that reliance on the Commerce Clause provides a fitting mechanism for creating a broad-based federal right to monitor commercial activity. It further suggests that the expressive rights principle of *303 Creative* should be weighed more heavily when the commercial actor in question lacks extensive social power—an issue debated, but given insufficient weight, in the opinion itself.

A. *Commercial Society in Constitutional Reasoning*

As this Article has demonstrated, the status of commercial activity is the decisive thread that weaves together public accommodation law. Yet this poses a challenge for doctrinal coherence, as each tectonic shift invoked a radically distinct constitutional issue. Considering the importance of the public or private status of commercial society and economic conduct beyond the public accommodations context only heightens this analytic challenge. In particular, the classification of for-profit corporations as rights-bearing persons has been a necessary legal innovation

202. In the legal sphere, this framing is, for example, prominent in election law. *See* Daryl J. Levinson, *Rights and Votes*, 121 Yale L.J. 1286, 1288–89, 1357 (2012); Jacob Eisler, The Law of Freedom: The Supreme Court and Democracy 291 (2023).

203. *See* discussion *supra* Section III.A for the structural logic behind these competing views.

for controversial decisions in the domains of campaign finance[204] and the regulation of employers.[205] In these areas, for-profit corporations were attributed rights-bearing capacity with regard to free speech and free exercise of religion.[206] In each of these areas, the classification of corporations as private rights-bearing entities, rather than public creations of shared social enterprise, was a necessary but not sufficient condition for the holding. In the campaign finance context, the recognition that corporations might have free speech rights was only a gateway to the more facially controversial conclusion that the governmental authority to prevent corruption is limited only to the most straightened quid pro quo.[207] In the free exercise conflict, it was a necessary condition to resolve the claim under the Religious Freedom Restoration Act that a birth control mandate was a substantial burden on religion. Yet for these questions of private rights to even be broached, a threshold claim was recognizing the rights-bearing potential of commercial entities.

The prevalent scholarly response has been to describe this private characterization of commercial society and the attendant expansion of rights as revanchist Lochnerism. Yet classifying observing this *result* from the Supreme Court's treatment of commercial and economic activity as rights-bearing does not address the core question:[208] *should* commercial activity bear such rights? The tendency to identify economic and commercial activity as rights-bearing must be answered by adopting a normatively coherent approach to the topic, rather than by simply observing that such a classification *can* have socially destructive deregulatory effects (as it did until *West Coast Hotel*).

One possible solution is monolithic: identify a single conception (or basis for a conception) of commercial society that should be deployed in a uniform fashion whenever the judiciary must look to the nature

204. Citizens United v. FEC, 558 U.S. 310, 318–19 (2010). *Citizens United* produced a veritable cottage industry on the classification of for-profit corporations as rights-bearing persons. *See, e.g.*, ADAM WINKLER, WE THE CORPORATIONS: HOW AMERICAN BUSINESSES WON THEIR CIVIL RIGHTS 363–65 (2018); Nikolas Bowie, *Corporate Personhood v. Corporate Statehood*, 132 HARV. L. REV. 2009, 2010 (2019) (reviewing WINKLER, *supra*); Elizabeth Pollman, *Corporate Personhood and Limited Sovereignty*, 74 VAND. L. REV. 1727, 1750 (2021) (critiquing the current treatment of corporations by the Supreme Court as lacking a limiting principle).

205. *See* Burwell v. Hobby Lobby Stores, Inc., 573 U.S. 682, 688–91 (2014). For an analysis linking the normative treatment of corporations as rights-bearing to the public accommodations context, see Bagenstos, *supra* note 10, at 1220. For a discussion of the link between the treatment of corporations in *Citizens United* and in *Hobby Lobby*, see Paul Horwitz, *The* Hobby Lobby *Moment*, 128 HARV. L. REV. 154, 162–63 (2014).

206. *Citizens United*, 558 U.S. at 318–19; *Burwell*, 573 U.S. at 688–91.

207. *See Citizens United*, 558 U.S. at 360–61.

208. One aspect of this is a change in scholarly treatment of *Lochner*. While far from fully rehabilitated, there has been something of a softening in the treatment of the case. *See supra* note 55 (describing Bernstein as the leader of this movement); *see also* Greene, *supra* note 55, at 463 ("[A]nticanonical cases must, on some replicable metric, be correct. . . . This is most obviously true of *Lochner*, whose reasoning may lead . . . to *Griswold*, to *Roe*, [and] to *Lawrence* . . . .").

of commercial activity. In short, the Court could assert that commercial activity is either always public (and thus always legitimately subject to collective oversight through political means) or always private (and thus always a full bearer of rights). There are examples of such coherentism in scholarship. Zephyr Teachout, for example, has prominently argued that the Constitution contains a unitary anti-corruption principle.[209] On the Court itself, such a tendency (in a more limited way) is apparent in modern free expression jurisprudence, which looks harshly upon speech restrictions in its commitment to Millian liberalism.[210] It has thus taken a (comparatively) unitary approach to the role of free expression.

Yet there are reasons to be skeptical that such a unitary approach would be effective in the context of categorizing commercial society, at least if legal analysis is to avoid slipping into moral dogmatism. That is because, for reasons adumbrated in Section III.B.2, commercial society is so interwoven with and so constitutive of liberal social organization that to classify it as having a universal social character as public or private for the purposes of legal analysis is, in effect, taking a dedicated normative stance regarding social organization writ large. To declare commercial society always private is to stake out terrain as a libertarian; to declare it always public is to stake out terrain as a far-left progressive bordering on Marxism. Such foundational normative postures may be the domain of philosophers or political demagogues, but it is not ideal for judges who should advance rule of law neutrality rather than their own ideology in deciding cases.[211]

B. *Autonomy, Vulnerability, and Democratic Authority*

Even if there is no unitary position or rule for classifying commercial society, there is still a deeper unity in the debate. In the American constitutional tradition, the two conceptions of commercial activity—as public or private—advance the same goal: preservation of political autonomy. However, the realization of this shared value comes from two

209. Zephyr Teachout, *The Anti-Corruption Principle*, 94 CORNELL L. REV. 341, 342 (2009).

210. This is most apparent in its harsh response to viewpoint restrictions. *See* Brandenburg v. Ohio, 395 U.S. 444, 448–49 (1969) (prohibiting limitations of political speech based on content unless the result is imminent violence). The modern Court's willingness to afford protections even to noxious hate speech has similar normative underpinnings. *See* R.A.V. v. City of St. Paul, 505 U.S. 377, 396 (1992); Virginia v. Black, 538 U.S. 343, 347–48 (2003). Yet it also manifests in content neutral regulation through, for example, the wider campaign finance jurisprudence. For critiques of the Court's broader normative posture, see, e.g., Lakier, *supra* note 57, 1244; Morgan N. Weiland, *Expanding the Periphery and Threatening the Core: The Ascendant Libertarian Speech Tradition*, 69 STAN. L. REV. 1389, 1393–94 (2017).

211. As Ronald Dworkin observes, judges must be willing to discipline their own normative commitments about justice (of which the characterization of commercial activity will be a prevalent one) to the disciplining of common law methods. *See* DWORKIN, *supra* note 78, at 255.

diametrically opposed directions. The importance of insulation from state authority to ensure autonomy is what gives the classification of commercial activity moral urgency for those who classify such activity as private. The *303 Creative* majority bluntly invokes this point with regards to free speech,[212] but it is also apparent in, for example, the premise that campaign financing has expressive capacity.[213] Countervailing this is the idea that autonomy requires empowering states to act so that the will of the electorate may be realized. This manifests in the public conception of commercial activity that grants the state broad power to pursue democratically authorized goals, even if this requires state entry into the realm of commerce and property. These goals are as multifarious as the possible scope of governance. While the Court occasionally assesses these goals directly (as in the context of anti-corruption as a justification for campaign finance regulation), it more typically evaluates the underlying constitutional justification for the state's authority, ranging from the Commerce Clause[214] to the Reconstruction Amendments[215] to interpretation of equal protection and due process guarantees.[216]

These means by which these two contrasting approaches realize autonomy are radically distinct—personal liberty protected by a zone of right against the state, contrasted against constitutional authorization of collective political action—but the underlying value is the same. In any given context, courts should prefer the conception of commercial society that best serves this unifying value of autonomy. Developing a full framework that links the classification of commercial society to the constitutional value of autonomy is an urgent project that should be explored by future scholarship. The foundations for such a framework may be buried in the *303 Creative* opinions themselves. The majority intimates that public accommodation statutes have more urgency when the businesses in question possess market power, and discriminatory exclusion may impact the ability of persons to access the type of business at all;[217] the dissent sternly calls this proposition both unsupported and false.[218] Yet the *normative* ideal behind the proposition has bite from one angle: a small, isolated commercial actor is more likely to need to rely on expression through the commercial form (including decisions regarding how it performs its commercial function) to express

212. *303 Creative*, 600 U.S. at 593–94.

213. *See* Buckley v. Valeo, 424 U.S. 1, 19 n.18 (1976). Of course, this also has a now-overturned premise that liberty of contract must be protected as substantive due process under *Lochner*.

214. Wickard v. Filburn, 317 U.S. 111, 118–19 (1942).

215. For the bluntest expression of this, see Jones v. Alfred H. Mayer Co., 392 U.S. 409, 437–38 (1968); see *supra* note 173.

216. *West Coast Hotel Co. v. Parrish*, 300 U.S. 379, 391 (1937) is the pivotal case for recognizing general governmental authority to act in the due process context, and *Williamson v. Lee Optical of Oklahoma*, 348 U.S. 483, 488–89 (1955) epitomizes the idea with regards to equal protection by applying highly permissive rational basis review.

217. *303 Creative*, 600 U.S. at 590–91.

218. *Id.* at 610–11 (Sotomayor, J., dissenting).

ideas, whereas a large powerful actor will have other mechanisms of making its voice known. For example, the normative weight of commercial activity might be lesser where a commercial actor has other social mechanisms for protecting itself, whether by access to significant financial resources or the ability to leverage its scope politically. Such analysis suggests the rights-bearing interest would be weaker in *Hobby Lobby* than in *303 Creative*, given the size and power of the economic actor in the former case—and suggests that the resort to the Dictionary Act to define if commercial activity was rights-bearing in *Hobby Lobby* may have been insufficiently nuanced.[219] None of this diminishes that, whether by small or large businesses, the discriminatory exclusion of customers comes at a great moral cost and causes significant harm. However, under the protection of expressive ideas, this does not justify regulation or exclusion of content (as the Court's permissive attitude towards hateful ideas reveals).[220] However, for isolated commercial actors that lack significant social or market power, this harm must be balanced against their limited capacity for expression. This protectiveness of less-powerful commercial actors may be adjacent (though not the same as) the principle, among the most influential of American constitutional law, that rights intervention should act to protect discrete and vulnerable minorities.[221] Courts should be more willing to limit the state where the party that may be adversely impacted is a less socially powerful one.

This analysis is of course far from dispositive, but it should be one factor in such analysis. Such a principle does not demand that commercial actors of a certain size or degree of market power may by default (or have a presumption of a right to) discriminate (if so, such a rule could yield oppressive rather than symbolic discrimination through, for example, multiple small actors engaging in the same type of discriminatory practices). Rather it is that the normative synthesis that Courts must undertake in balancing the normatively forceful state interest in preventing discrimination against the typical protection of individual expression can be stronger in situations where the commercial actor is not one with extensive social power. This expressive interest would also of course decline if the discriminatory actor's conduct had little intrinsic value as an expression of liberty (for example, as expression). If, for example, the actor was simply a vendor of standardized goods, the decision to discriminate is purely a manifestation of animus and less likely to be deserving of expressive protection.[222]

219. *See* Burwell v. Hobby Lobby, 573 U.S. 682, 707–08 (2014).

220. *See supra* note 210 (discussing permissive actions regarding hate speech).

221. The most influential expressions of this idea are *United States v. Carolene Products Co.*, 304 U.S. 144, 152 n.4 (1938) and ELY, *supra* note 22, at 75–76.

222. *See* discussion *supra* note 161 (discussing the failure of the majority to offer a limiting principle to when commercial activity is intrinsically expressive). At the same time, a vendor of standardized goods who has little market power and elects to discriminate is simply making a poor market choice; the good could be readily obtained

Generalizing this analysis beyond the public accommodations context yields the following proposition: judges should be more likely to treat commercial activity as private and rights-bearing where it reflects the perspective of an economically and socially weaker actor and thus where insulating the commercial activity from government oversight is (1) likely to deprive the commercial actor of an opportunity to realize a right and leave them with no alternative avenues; (2) unlikely to distort broader market dynamics; and (3) likely to serve the interest reflected by the right. Conversely, where market actors are more powerful, and interdicting government regulation is likely to allow them to pathologically shape market operations, judges should be disinclined to recognize their assertion of right.

It is worthwhile to consider how this approach would construe the other tectonic moments in public accommodation law. The *Civil Rights Cases*, critically, balanced the interest in anti-discrimination against the interest in liberty guaranteed by limiting the scope of governmental power through constitutional interpretation. Yet once it is recognized that the case is ultimately about the classification of commercial activity, the interest in this liberty, as in the expressive context, is greater for less powerful commercial actors. Powerful commercial actors have multiple means of realizing their social power and thus a less compelling claim to liberty under commercial governance. In failing to recognize the background of social power against which such an analysis should take place, the *Civil Rights Cases* failed to appropriately consider the competing norms, instead relying on a conceptually formalist understanding of the appropriate scope of power granted under the Reconstruction Amendments.[223] Conversely, the validation of Title II through the Commerce Clause reflects a more nuanced integration of competing values. Reliance on a constitutional provision that justifies governmental authority only where there is some level of economic power—that is, interstate significance—will tend to vindicate regulation of commercial activity where protection of expressive potential is less normatively urgent. Correspondingly, the Commerce Clause grants federal authority precisely where distortion of market dynamics is the likely effect of discriminatory action. In brief, this proposed analytic framework suggests the *Civil Rights Cases* were insufficiently nuanced in recognizing the competing norms at issue, while the Court's treatment of Title II accommodated competing normative interests.

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elsewhere and the vendor has merely diminished their customer base. Thus, that such conduct would be less deserving of protection can be generally explained as reflecting its broad conceptual irrationality—a quality that fits comfortably with Dworkinian integrative analysis.

223. In this sense, the *Civil Rights Cases* might be critiqued, in Dworkinian terms, as conventionalist. *See* DWORKIN, *supra* note 78, at 114.

VI. Conclusion

This Article has observed that a case of profound significance for governmental pursuit of anti-discrimination, and regulation of economic activity more broadly, depends upon a social judgment regarding the nature of commercial society. In declaring commercial activity to be private and thus rights-bearing, rather than public and subject to collective political will, *303 Creative* insulated discriminatory commercial conduct from regulation. This public/private framework organized the otherwise disorganized history of public accommodation law. Furthermore, it provides a point of entry to the question—critical not only for public accommodation law, but also for state oversight of economic activity generally—as to when Courts should treat commercial activity as privately rights-bearing or as a matter of collective, legitimately regulable interest.

The struggle between private and public conceptualizations of commercial society has deep roots in both intellectual history and in the normative claims of contemporary legal scholarship. The unique contribution of this Article is to observe that this struggle is dispositive of doctrinal outcomes. Public accommodations jurisprudence is otherwise marked by radical swings and a lack of any organizing logic, and the public/private commercial activity frame transforms it into a coherent debate. This framework has the capacity to clarify a wide variety of other areas, such as campaign finance. Within the scholarship, this framework deepens the anxieties regarding the Lochnerist revival by showing the ultimate normative struggle at issue in the Court's deregulatory application of private rights. Turning back to the shared value of autonomy, however, may suggest a way forward when the judiciary must assess the status of commercial society in constitutional reasoning.